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[EXECUTION]

LIMITED LIABILITY COMPANY AGREEMENT
OF
PARAKEET HOLDCO II, LLC

THE LIMITED LIABILITY COMPANY INTERESTS REPRESENTED BY THIS LIMITED LIABILITY COMPANY AGREEMENT HAVE NOT BEEN REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED, OR UNDER ANY OTHER APPLICABLE FEDERAL OR STATE SECURITIES LAWS. SUCH INTERESTS MAY NOT BE SOLD, ASSIGNED, PLEDGED OR OTHERWISE DISPOSED OF AT ANY TIME WITHOUT EFFECTIVE REGISTRATION UNDER SUCH ACT AND LAWS OR EXEMPTION THEREFROM, AND COMPLIANCE WITH THE OTHER RESTRICTIONS ON TRANSFERABILITY SET FORTH HEREIN.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

TABLE OF CONTENTS

PAGES

ARTICLE I DEFINITIONS 1

ARTICLE II ORGANIZATION.....1

2.01. Formation. 1
2.02. Name. 2
2.03. Registered Agent; Registered Office. 2
2.04. Principal Office; Other Offices. 2
2.05. Purpose. 2
2.06. Term. 2
2.07. No State Law Partnership. 2
2.08. Liability to Third Parties. 3

ARTICLE III MEMBERS; PROJECTED FUNDING AMOUNTS; CAPITAL CONTRIBUTIONS; UNITS CAPITAL ACCOUNTS; REVALUATIONS 3

3.01. Members; Projected Funding Amounts; Capital Contributions. 3
3.02. Units. 3
3.03. Power of Members; Voting Rights. 5
3.04. Additional Capital Contributions. 5
3.05. Additional Members. 6
3.06. Return of Capital Contributions; Special Rules. 6
3.07. Capital Accounts. 6
3.08. Gross Asset Value. 7

ARTICLE IV ALLOCATION OF PROFITS AND LOSSES 8

4.01. Profits and Losses. 8

ARTICLE V DISTRIBUTIONS.....8

5.01. General. 8
5.02. Distributions. 8
5.03. Distributions Upon a Member Equity Sale. 9
5.04. Tax Distributions. 10
5.05. Withholding. 10

ARTICLE VI MANAGEMENT.....11

6.01. Management. 11
6.02. Action by Written Consent. 11
6.03. Reserved Powers of the Manager. 12
6.04. Certain Waivers of Fiduciary Duties. 14

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

6.05. Liability of Parties....14
6.06. Indemnification....15
6.07. Confidentiality; Non-Competition; Non-Solicitation; No Hire....16
6.08. Corporate Opportunities....18

ARTICLE VII RESTRICTIONS ON TRANSFERS....18

7.01. Restrictions on Transfers....18
7.02. Permitted Transfers....18
7.03. Conditions to Transfer....19
7.04. Rights of Non-Admitted Transferee....19
7.05. Admission of Transferee as Member....20
7.06. Effect of Disposition....20
7.07. Prohibited Transfers....20
7.08. Drag-Along Rights....20

ARTICLE VIII WITHDRAWAL....23

8.01. Restrictions on Withdrawal....23

ARTICLE IX DISSOLUTION, LIQUIDATION, AND TERMINATION....23

9.01. Dissolution....23
9.02. Liquidation....23

ARTICLE X ALLOCATION RULES....24

10.01. Special Allocations....24
10.02. Code Section 704(c)....26
10.03. Other Allocation Rules....26

ARTICLE XI BOOKS AND RECORDS, ACCOUNTING, TAX ELECTIONS AND TAX MATTERS....27

11.01. Maintenance of Records; Information Rights....27
11.02. Schedule K-1 Delivery....27
11.03. Tax Elections; Determinations Not Provided for in Agreement....27
11.04. Partnership Audit Rules....28

ARTICLE XII INITIAL PUBLIC OFFERING....29

12.01. Conversion Upon Initial Public Offering....29
12.02. Market Stand Off....30

ARTICLE XIII GENERAL PROVISIONS....31

13.01. Notices....31
13.02. Interpretation....31

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

13.03. Governing Law; Jurisdiction; Venue; Waiver of Jury Trial. 32
13.04. Binding Agreement. 32
13.05. Severability. 32
13.06. Entire Agreement. 32
13.07. Further Action.. 32
13.08. Amendment or Modification. 33
13.09. Representations. 33
13.10. Counterparts. 34
13.11. Representation; Conflict Waiver. 35
13.12. Broker's Indemnity; Company Accountant; Certain Expenses. 35

EXHIBITS

EXHIBIT A MEMBERS; UNITS A-1

EXHIBIT B DEFINITIONS B-1

EXHIBIT C EXAMPLE IRR CALCULATION C-1

SCHEDULE

SCHEDULE 1 EXISTING ACTIVITIES

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

LIMITED LIABILITY COMPANY AGREEMENT

OF

PARAKEET HOLDCO II, LLC

This Limited Liability Company Agreement of Parakeet HoldCo II, LLC (the "Company"), a limited liability company organized pursuant to the Delaware Limited Liability Company Act, 6 Del. C. § 18-101 et seq. (the "Act"), is entered into as of October 11, 2024 (the "Effective Date"), by and among the Persons (as such term is defined herein) listed on Exhibit A hereto and, for the limited purposes specified on the signature pages hereto, Parakeet MHC Founders (as defined herein), Austin Berk and Jonathan Wyss.

RECITALS

A. The Company was originally organized as a limited liability company under the Act pursuant to the Certificate of Formation filed with the Delaware Secretary of State on October 10, 2024 (the "Formation Date"), for the purposes set forth herein.

B. On or about the Effective Date, Jadian Real Estate Fund II Aggregator, LP, a Delaware limited partnership ("JREF II Aggregator"), is making a Capital Contribution (as defined herein) in exchange for such number of Common Units (as defined herein) set forth opposite its name on Exhibit A hereto (the "Initial Capital Contribution").

C. This Agreement is being entered into to, among other things, set forth certain terms and conditions of the ownership, management and operation of the Company.

D. The Company is a "manager" managed limited liability company in accordance with § 18-402 of the Act and is managed by a Manager (as defined herein).

NOW THEREFORE, in consideration of the mutual covenants and agreements contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto, each intending to be legally bound, hereby agree as follows:

ARTICLE I

DEFINITIONS

Certain defined terms used in this Agreement are set forth in Exhibit B.

ARTICLE II

ORGANIZATION

2.01. Formation.

The Company was organized as a Delaware (the "State of Formation") limited liability company pursuant to the Act by the filing of a Certificate of Formation of the Company on the Formation Date (the "Certificate of Formation").

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

2.02. Name.

The name of the Company is "Parakeet HoldCo II, LLC" and all Company business shall be conducted under that name or such other names as comply with Applicable Law that the Manager may select from time to time.

2.03. Registered Agent; Registered Office.

The registered agent of the Company shall be Corporation Service Company, and the registered office of the Company in the State of Formation shall be 251 Little Falls Drive, Wilmington, Delaware 19808 or such other office (which need not be a place of business of the Company) as the Manager may designate from time to time in the manner provided by Applicable Law.

2.04. Principal Office; Other Offices.

The principal office of the Company shall be at such place as the Manager may designate from time to time, which need not be in the State of Formation. The initial principal office of the Company shall be at c/o Jadian Capital, 4 Star Point, Suite 204, Stamford, CT 06902. The Company may change its principal office or have such other offices as the Manager may designate from time to time.

2.05. Purpose.

The purpose of the Company is to, directly or indirectly, through its direct and indirect Subsidiaries, (a) acquire, re-develop, develop, own, operate and monetize (i) as its primary objective, manufactured housing communities ("MHC") across the United States, with an initial emphasis on Florida and the Southeast, and (ii) as its secondary objective, real estate opportunities adjacent to MHC, including RV parks, marinas, and campgrounds, (b) own membership, partnership or other interests in its direct and indirect Subsidiaries ("Subsidiary Interests") and, in connection therewith, sell, assign, transfer, operate, lease, hypothecate, pledge or otherwise deal with such Subsidiary Interests, (c) act as the member, managing member, partner, manager or stockholder of each direct or indirect Subsidiary of the Company and, in connection therewith, cause each such Subsidiary to assign, transfer, operate, manage, renovate, develop, redevelop, rehabilitate, subdivide, improve, lease, finance, hypothecate, pledge, sell and otherwise deal with assets of such Subsidiaries, and (d) engage in any other activity permitted under Applicable Law including without limitation contracting for necessary or desirable services of professionals and others.

2.06. Term.

The Company commenced its existence on the Formation Date, and shall have perpetual existence, unless sooner terminated in accordance with the provisions of this Agreement.

2.07. No State Law Partnership.

The Members intend that the Company shall not be a partnership or joint venture, and that no Member shall be a partner or joint venturer of any other Member in connection with this Agreement, for any purpose other than federal, state, and local tax purposes, and the provisions of this Agreement shall not be construed otherwise.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

2.08. Liability to Third Parties.

No Member shall be liable for the debts, obligations, or liabilities of the Company, except to the extent required under the Act with respect to amounts distributed to the Member at a time when the Company was insolvent or was rendered insolvent by virtue of the distribution.

ARTICLE III

MEMBERS; PROJECTED FUNDING AMOUNTS; CAPITAL CONTRIBUTIONS; UNITS CAPITAL ACCOUNTS; REVALUATIONS

3.01. Members; Projected Funding Amounts; Capital Contributions.

(a) After giving effect to the Initial Capital Contribution, the name, address and number and class of Units owned by each Member are as set forth on Exhibit A. Each of the Members listed on Exhibit A has executed this Agreement and is hereby admitted as a Member. The Capital Contributions attributable to each Member in respect of such Member's Units, if any, are as set forth in the books and records of the Company.

(b) Exhibit A shall be revised from time to time by the Manager to reflect the following, after the occurrence thereof: (i) any issuance, repurchase or Transfer of Units approved by the Manager in accordance with this Agreement; (ii) any change to the Capital Contributions of a Member; (iii) the conversion of any Units, if applicable; or (iv) any change of address of a Member, except that Exhibit A will not be revised if any of the actions described in clauses (i)-(iii) above was taken in breach of the terms of this Agreement.

3.02. Units.

(a) Issuance and Creation of Units.

(i) Subject to the terms of this Agreement, the Company is authorized to issue Membership Interests designated as "Units," which shall constitute limited liability company interests under the Act. The Units initially shall consist of two (2) classes, Common Units and Class P Units, and shall have the rights, preferences, privileges, limitations, restrictions and/or obligations as set forth herein. The references to Units shall be deemed to include fractional Units.

(ii) Subject to the terms of this Agreement, the Manager is authorized to create and issue new Units or other Securities, which may have rights, preferences, privileges, limitations, restrictions and/or obligations that are junior to, *pari passu* with or senior to any other class or series of Units or other Securities. To the fullest extent permitted by the Act, but subject to the terms of this Agreement, including Section 6.03, the Company may issue Units or other Securities from time to time in one or more classes, or one or more series of such classes, which classes or series (or the holders thereof) shall have, subject to the provisions of Applicable Law, such rights, preferences, privileges, limitations, restrictions and/or obligations as shall be fixed by the Manager, including with respect to:

(A) the allocation of items of profit or loss to each class or series;

(B) the right of each class or series to share in distributions;

(C) maintaining separate and distinct records for each class or series;

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(D) allocating specific assets, liabilities, debts, obligations and expenses to each class or series;

(E) the rights of each class or series upon dissolution and liquidation of the Company;

(F) the price at which, and the terms and conditions upon which, each class or series may be redeemed by the Company, if any class or series is so redeemable;

(G) the rate at which, and the terms and conditions upon which, each class or series may be converted into or exercised or exchanged for another class or series of Units or other Securities if any class or series is so convertible, exercisable or exchangeable;

(H) the right of the owners of each class or series to information about the Company, including limitations of the rights in Section 18-305 of the Act; and

(I) the right of each class or series to vote on Company matters, including matters relating to the rights, preferences, privileges, limitations, restrictions and/or obligations of such class or series, if any such class or series (or any holders thereof) is granted any voting rights.

In creating a class or series of Units, the Manager may grant rights, preferences and privileges solely with respect to that class or series, and not others, and may also impose limitations, restrictions and/or obligations with respect that class or series that are different from those with respect to any other class or series.

(b) Certificates for Units; UCC Opt-In. The Company is hereby authorized (but is not obligated, unless so determined by the Manager) to issue certificates representing the ownership of Units in accordance with the Act. Pursuant to the Delaware Uniform Commercial Code Section 8-103(c), all Units shall be considered securities governed by Article 8 of the Delaware Uniform Commercial Code.

(c) MIP LLC.

(i) Parakeet Holdco II MIP, LLC, a Delaware limited liability company ("MIP LLC"): (x) was organized as a limited liability company pursuant to the Act on or about October 10, 2024; (y) is authorized to issue to executives, key employees, consultants and independent contractors of the Company, or other Persons, directly or indirectly, providing services to, or for the benefit of, the Company or its Subsidiaries or Affiliates, units of interest in MIP LLC (such units referred to as "MIP LLC Units," and each Person receiving MIP LLC Units, a "Management Participant" and collectively, the "Management Participants"); and (z) is governed by the Limited Liability Company Agreement of Parakeet Holdco II MIP, LLC, dated as of the Effective Date (as amended, amended and restated, supplemented or otherwise modified from time to time, the "MIP LLC Agreement"), which sets forth the entitlements of the holders of the MIP LLC Units and includes the Parakeet Holdco II MIP, LLC Equity Incentive Plan (the "Incentive Plan").

(ii) The MIP LLC Units will entitle the holders thereof to receive distributions from the MIP LLC in the amounts set forth in the MIP LLC Agreement and the Incentive Plan, but only to the extent provided therein and subject to such holder's Separate Agreement.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(iii) The Class P Units shall entitle the MIP LLC to receive distributions from the Company of the amounts payable in respect thereof in accordance with Article V. As of the Effective Date, the MIP LLC has been issued the number of Class P Units set forth opposite its name on Exhibit A hereto.

(iv) At such time that MIP LLC Units are issued to a new or existing Management Participant, the Manager shall determine the Distribution Threshold thereof. MIP LLC Units shall be subject to vesting, holdbacks and certain other conditions and distribution limitations (including the applicable Distribution Threshold), as determined by the Manager upon the award of MIP LLC Units to a Management Participant, as set forth in the Separate Agreement applicable to such MIP LLC Units.

(v) The MIP LLC shall have no right to vote, consent to or approve of, any matters under this Agreement or Applicable Law.

(d) Profits Interests. It is the intention of the parties to this Agreement that the Class P Units qualify as "profits interests," as defined in Revenue Procedure 93-27, 1993-2 C.B. 343, as clarified by Revenue Procedure 2001-43, 2001-2 C.B. 191 ("Profits Interests"), and the Company and the Members shall comply with the provisions of Revenue Procedure 93-27 and Revenue Procedure 2001-43 relating to qualification of the Class P Units as "profits interests" eligible for the favorable tax treatment described in such Revenue Procedures. To that end, the Company and each Member agree that it is the intention of the Members that allocations and distributions to each holder of Class P Units be limited to the extent necessary so that such Class P Units qualify as profits interests, and this Agreement should be interpreted consistently therewith. The Members agree that, with respect to each Class P Unit, the Manager shall take such action as it deems necessary to enable the Company to comply with the requirements of the "Safe Harbor" election within the meaning of the Proposed Revenue Procedure of Notice 2005-43, 2005-1 C.B. 1221, Proposed Regulations Section 1.83-3(l)(1) or Proposed Regulations Section 1.704-1(b)(4)(xii) at such time as such proposed Procedure and Regulations are effective and to take such actions as may be required by pronouncements or Regulations issued by the Internal Revenue Service or Treasury Department after the Effective Date to enable each Class P Unit to continue to be treated as a "profits interest".

3.03. Power of Members; Voting Rights.

(a) Subject to the express provisions of this Agreement and except as required by any of the non-waivable provisions of the Act, the Members shall have no power to exercise any voting rights except for those specifically granted to such Members pursuant to the express terms of this Agreement (including the right to designate the Manager pursuant to Section 6.01(a)), and shall have no independent power to bind the Company.

(b) In exercising any of their powers expressly set forth in this Agreement or in any non-waivable provisions of the Act, the Members shall act by the voting of their respective Units at meetings or by written consents and shall otherwise exercise the rights and comply with the obligations of Members as set forth herein. In exercising any of their powers expressly set forth in this Agreement, each Common Member shall have one vote per Common Unit held by such Common Member on the applicable voting date. The Class P Units shall be non-voting, and MIP LLC, solely in its capacity as such, shall have no voting rights (whatsoever) and no separate class voting rights.

3.04. Additional Capital Contributions.

(a) No Capital Contribution shall be made except as approved by the Manager, in its sole and absolute discretion. If a new or existing Member shall make additional Capital Contributions to the

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

Company hereafter, which may be made only as permitted by the Manager, in its sole and absolute discretion, then the Membership Interests issued in exchange for such Capital Contribution shall be determined by the Manager in its sole and absolute discretion.

(b) Following the Effective Date, at such time or times as mutually agreed to by the Manager and Parakeet MHC Founders, LLC, a Delaware limited liability company ("Parakeet MHC Founders"), Parakeet MHC Founders shall have the right, but not the obligation, to purchase from the Company up to such number of Units so that after giving effect to such purchase, Parakeet MHC Founders would hold Units representing up to one percent (1%) of the total number of the Units then held by JREF II Aggregator and Parakeet MHC Founders, in each case, on such terms as are mutually determined by the Manager and Parakeet MHC Founders.

3.05. Additional Members.

No Person shall be admitted to the Company as an additional Member without the approval of the Manager, which consent may be granted or withheld in the sole and absolute discretion of the Manager.

3.06. Return of Capital Contributions; Special Rules.

Except as otherwise expressly provided herein, including Section 5.02, (i) no Member shall be entitled to the return of any part of its Capital Contribution or to be paid interest in respect of either its Capital Account balance or its Capital Contribution; (ii) no Member shall have any personal liability for the return of the Capital Contribution of any other Member; (iii) no Member shall have any priority over any other Member with respect to the return of any Capital Contribution (except to the extent that such Member's priority is due to ownership of different classes or types of Securities in relation to another Member); and (iv) MIP LLC shall not be entitled to assert any claim of mismanagement or any other claim with respect to the manner of the conduct of business of the Company against any Manager, any other Member or the Company.

3.07. Capital Accounts.

A Capital Account shall be established and maintained for each Member. The capital accounts of the Members, as updated from time to time, shall be set forth in the books and records of the Company. Capital Accounts shall be debited and credited in accordance with the following provisions:

(a) To each Member's Capital Account, there shall be credited such Member's Capital Contributions, such Member's distributive share of Profits, and any items in the nature of income or gain that are specially allocated pursuant to this Agreement, and the amount of any liabilities of the Company that are assumed by such Member, or that are secured by any assets of the Company distributed to such Member.

(b) To each Member's Capital Account, there shall be debited the amount of cash and the Gross Asset Value of any Company assets distributed to such Member pursuant to any provision of this Agreement, such Member's distributive share of Losses, and any items in the nature of expenses or losses that are specially allocated pursuant to this Agreement, and the amount of any liabilities of such Member assumed by the Company or that are secured by any property contributed by such Member to the Company.

(c) If ownership of any Membership Interest in the Company is assigned in accordance with the terms of this Agreement, the assignee shall succeed to the Capital Account of the assignor to the extent it relates to the assigned Membership Interest.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(d) In determining the amount of any liability for purposes of Sections 3.07(a) and (b) above, there shall be taken into account Code Section 752(c) and any other applicable provisions of the Code and Regulations.

(e) To each Member's Capital Account, there shall be debited or credited, as the case may be, such adjustments as are necessary to reflect a revaluation of Company assets to reflect the Gross Asset Value of all Company assets, as required by Regulations Section 1.704-1(b)(2)(iv)(f) and Section 3.08.

The foregoing provisions and the other provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with Code Section 704 and Regulations Section 1.704-1(b) and shall be interpreted and applied in a manner consistent with such Regulations. The Company shall make any adjustments that are necessary or appropriate to maintain equality between the Capital Accounts of the Members and the amount of Company capital reflected on the Company's balance sheet as computed for book purposes in accordance with Regulations Section 1.704-1(b)(2)(iv)(q).

3.08. Gross Asset Value.

The Gross Asset Value of any asset of the Company shall be equal to the asset's adjusted basis for federal income tax purposes, except as follows:

(a) The initial Gross Asset Value of any asset contributed by a Member to the Company shall be the gross Fair Market Value of such asset.

(b) The Gross Asset Values of all Company assets shall be adjusted to equal their respective gross Fair Market Values in connection with (and to be effective immediately prior to) the following events: (i) the acquisition of an additional Membership Interest in the Company by any new or existing Member in exchange for more than a *de minimis* Capital Contribution; (ii) the distribution by the Company to a Member of more than a *de minimis* amount of property (including cash) as consideration for an interest in the Company; (iii) the grant of an interest in the Company (other than a *de minimis* interest) as consideration for the provision of services to or for the benefit of the Company by an existing Member acting in the capacity of a Member or by a new Member acting in the capacity of a Member or in anticipation of being a Member; (iv) the liquidation of the Company within the meaning of Regulations Section 1.704-1(b)(2)(ii)(g); or (v) any other time, in the reasonable, good faith discretion of the Manager, for which an adjustment would be necessary or appropriate to reflect the relative economic interests of the Members in the Company; *provided, however*, that an adjustment pursuant to clauses (i), (ii), or (iii) above shall be made only if such adjustment is necessary or appropriate to reflect the relative economic interests of the Members in the Company.

(c) The Gross Asset Value of any Company asset distributed to any Member shall be the gross Fair Market Value of such asset on the date of distribution.

(d) The Gross Asset Values of Company assets shall be increased (or decreased) to reflect any adjustments to the adjusted bases of such assets pursuant to Code Section 734(b) or Code Section 743(b), but only to the extent that such adjustments are taken into account in determining Capital Accounts pursuant to Regulations Section 1.704-1(b)(2)(iv)(m) and Section 10.01 hereof; provided, however, that Gross Asset Values shall not be adjusted pursuant to this Subsection to the extent they were adjusted pursuant to Section 3.08(b) above in connection with a transaction that otherwise would result in an adjustment pursuant to this Subsection.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(e) If the Gross Asset Value of an asset has been determined or adjusted pursuant to this Section 3.08, such Gross Asset Value shall thereafter be adjusted by the Depreciation taken into account with respect to such asset for purposes of computing Profits and Losses.

ARTICLE IV

ALLOCATION OF PROFITS AND LOSSES

4.01. Profits and Losses.

After giving effect to the special allocations set forth in Section 10.01 and subject to the other provisions of Article X, Profits or Losses for any Accounting Period shall be allocated among the Members in such a manner that, as of the end of such Accounting Period, with respect to each Member, the sum of (i) the Capital Account of such Member, (ii) such Member's share of Company Minimum Gain and (iii) such Member's Member Nonrecourse Debt Minimum Gain shall, as nearly as possible, be equal to the net amount, positive or negative, that would be distributed to such Member or for which such Member would be liable to the Company under this Agreement, determined as if the Company were to, on the last day of the Accounting Period, (i) sell all of the assets of the Company for an amount equal to their respective Gross Asset Values, (ii) satisfy all debts in accordance with their terms (limited, with respect to each nonrecourse liability, to the Gross Asset Value of the assets securing such liability), and (iii) distribute the remaining proceeds of such sale in liquidation pursuant to Sections 5.02, all of the foregoing computed after all actual distributions or Capital Contributions have been made for such Accounting Period. For purposes of this Section 4.01, all unvested Class P Units shall be treated as vested Class P Units.

ARTICLE V

DISTRIBUTIONS

5.01. General.

Subject to Applicable Law and the terms of any loan or credit agreement to which the Company or any Subsidiary thereof is a party, distributions shall be made to the Members at the times determined by the Manager, except that Tax Distribution Amounts shall be distributed to the Members in accordance with and subject to Section 5.04.

5.02. Distributions.

(a) All amounts received by the Company shall be distributed in the priorities set forth below:

(i) first, until the Common Unreturned Contribution Amount for all then outstanding Common Units is reduced to zero, the amount then available for distribution to the Common Members in respect of their Common Units, *pro rata* based on their respective Common Percentage Interests in effect at the time at which the distribution is made;

(ii) second, to the Common Members in respect of their Common Units, *pro rata* based on their respective Common Percentage Interests in effect at the time at which the distribution is made, until the Investor Member has achieved an Internal Rate of Return of ten percent (10%);

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(iii) third, *pari passu*, with respect to the amount then available for distribution: (A) eighty percent (80%) to the Common Members in respect of their Common Units, *pro rata* based on their respective Common Percentage Interests in effect at the time at which the distribution is made; and (B) twenty percent (20%) to MIP LLC in respect of its Class P Units, until the Investor Member has achieved both (x) an Internal Rate of Return of fifteen percent (15%) or greater and (y) a MOPIC of 1.5x or greater;

(iv) fourth, *pari passu*, with respect to the amount then available for distribution: (A) seventy-five percent (75%) to the Common Members in respect of their Common Units, *pro rata* based on their respective Common Percentage Interests in effect at the time at which the distribution is made; and (B) twenty-five percent (25%) to MIP LLC in respect of its Class P Units, until the Investor Member has achieved both (x) an Internal Rate of Return of eighteen percent (18%) or greater and (y) a MOPIC of 1.75x or greater;

(v) fifth, *pari passu*, with respect to the amount then available for distribution: (A) seventy percent (70%) to the Common Members in respect of their Common Units, *pro rata* based on their respective Common Percentage Interests in effect at the time at which the distribution is made; and (B) thirty percent (30%) to MIP LLC in respect of its Class P Units, until the Investor Member has achieved both (x) an Internal Rate of Return of twenty five percent (25%) or greater and (y) a MOPIC of 2.0x or greater; and

(vi) thereafter, *pari passu*, with respect to the amount then available for distribution: (A) sixty percent (60%) to the Common Members in respect of their Common Units, *pro rata* based on their respective Common Percentage Interests in effect at the time at which the distribution is made; and (B) forty percent (40%) to MIP LLC in respect of its Class P Units.

(b) Notwithstanding anything contained in this Agreement to the contrary, (i) no distribution shall be made in respect of the Class P Units under Section 5.02(a) until there shall have been aggregate distributions under Sections 5.02(a) subsequent to the issuance of the Class P Units in an aggregate amount equal to the Class P Distribution Threshold (the "Distribution Threshold Condition"); and (ii) no distribution shall be made in respect of the Class P Units under Section 5.02(a) if, at the time of such distribution, there are no Vested MIP LLC Units then outstanding. In the event that any amount is not distributed in respect of the Class P Units under Section 5.02(a) because the Distribution Threshold Condition with respect to the Class P Units has not been satisfied or there are no Vested MIP LLC Units then outstanding, then the amount not so distributed shall be re-allocated among, and distributed to, the Common Members in respect of their Common Units in accordance with Section 5.02(a).

5.03. Distributions Upon a Member Equity Sale.

Notwithstanding anything contained in this Agreement to the contrary, in any Sale of the Company, as a result of which the Members, rather than the Company, receive the proceeds of such Sale of the Company (each a "Member Equity Sale"), (a) subject to any holdback or reserve described in clause (b), the Members, as a group, hereby agree to apportion and, at the closing of any Member Equity Sale, pay over the proceeds among those Members participating in such Member Equity Sale so that the payments to each Member shall correspond to and be in accordance with the distribution provisions set forth in Section 5.02 as though the Company received the proceeds and distributed them in accordance with Section 5.02; and (b) Investor, or such other Person selected as the representative of the Members by the Manager (the "Member Representative"), shall have the right to withhold and each of the Members agrees to contribute and pay over from its portion of the proceeds received or receivable by such Member, a portion of the proceeds payable

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in any such transaction equal to an amount necessary, as reasonably determined by the Manager or Member Representative (as applicable), in good faith, to satisfy any post-transaction indemnification, purchase price adjustment or other similar escrow or holdback obligation, provided, however, that in no event shall a Member be obligated to make a contribution pursuant to the foregoing in excess of its pro rata portion of such proceeds. Any amount withheld pursuant to clause (b) shall be held in a separate account for the ratable benefit of the Members participating in the transaction giving rise to such proceeds, and may be used, as determined by the Manager or Member Representative (as applicable), in good faith, to satisfy any such post-transaction obligation described in clause (b); provided, however, that in no event shall a Member be obligated to make a contribution pursuant to the foregoing in excess of its pro rata portion of such proceeds. The Company is hereby authorized to seek to include in any transaction documents governing such Member Equity Sale terms reflecting the provisions of this Section 5.03, including, if applicable, provisions providing that the Member Representative shall not have any liability with respect to amounts so withheld or paid, except for liability caused by the gross negligence or willful misconduct of the Member Representative.

5.04. Tax Distributions.

Unless otherwise determined by the Manager, the Company shall, to the extent it has sufficient cash and at least five (5) days prior to the original due date for quarterly U.S. federal estimated tax payments, for each Fiscal Year, distribute to each Member the excess (such excess the "Tax Distribution Amount"), if any, of: (a) (i) the aggregate net taxable income (determined under U.S. federal income tax principles but regardless of whether such Member is subject to U.S. federal income taxes) of the Company allocable to such Member with respect to such Fiscal Year minus any taxable loss of the Company allocated to the Member pursuant to this Agreement in respect of any prior Fiscal Year and not previously taken into account under this Section 5.04 to the extent such loss would be available under the Code to offset income of the Member (or, as appropriate, the direct or indirect partners, members or shareholders of the Member) determined as if income and loss from the Company was the only income and loss of the Member (or, as appropriate, the direct or indirect partners, members or shareholders of the Member) in such Fiscal Year and all prior Fiscal Years, in each case determined under U.S. federal income tax principles, multiplied by (ii) the highest combined, marginal U.S. federal, state and local income tax rate to which an individual resident in New York City, New York is subject for such Fiscal Year (as adjusted, in the discretion of the Manager, based on reasonable assumptions, to take into account Section 199A of the Code) (such rate, the "Assumed Tax Rate"); over (b) the aggregate distributions previously made to such Member (x) under this Section 5.04 with respect to such Fiscal Year, or (y) otherwise pursuant this Article V during such Fiscal Year, as applicable. Distributions made to any Member under this Section 5.04 shall be treated as an advance against, and shall reduce, subsequent distributions to such Member under the other provisions of this Agreement. For the avoidance of doubt, neither gains realized by Members upon the sale or exchange of their interest in the Company nor guaranteed payments for services shall be treated as income allocable to a Member by the Company. Notwithstanding anything else contained herein, no such tax distribution shall be made, however, to the extent that such distributions are prohibited under Applicable Law or the terms of any note or loan or credit agreement to which the Company, or a Subsidiary thereof, is a party. Notwithstanding anything to the contrary herein, for purposes of determining the Assumed Tax Rate, the Manager may, in its sole and absolute discretion, choose to apply the highest combined marginal U.S. federal, state, and local income tax rates applicable to natural persons residing in New York City with income not in excess of $25,000,000.

5.05. Withholding.

Each Member hereby authorizes the Company to withhold and to pay over any taxes payable by the Company as a result of such Member's participation in the Company. If and to the extent that the Company shall be required to withhold any such taxes, such Member shall be deemed for all purposes of this Agreement to have received a distribution from the Company equal to the amount withheld. To the

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extent that the aggregate amount withheld on behalf of a Member for any period exceeds the distribution to which such Member is entitled for such period, the amount of such excess shall be considered a demand loan from the Company to such Member with interest at 10% per annum accruing from the date of payment by the Company until discharged by such Member by repayment. Each Member hereby severally indemnifies and holds the Company and the Manager harmless for such Member's respective portion of the financial burden of any amount of taxes imposed on the Company and any amount withheld from a payment to the Company, on account of a Member's participation in the Company (including interest and penalties) and, in furtherance thereof, each Member agrees (A) to pay such amount to the Company within fifteen (15) days following the Company's request for payment and (B) that any amounts otherwise distributable to such Member may be applied in satisfaction of such obligations, in each case, as determined by the Manager in its sole reasonable discretion.

ARTICLE VI

MANAGEMENT

6.01. Management.

(a) Management and control of the Company shall be vested exclusively in the Manager, and the business and affairs of the Company shall be managed under the direction of the Manager. Subject to the terms of this Agreement, the Manager shall always retain the authority to make management decisions notwithstanding any delegation of duties by the Manager to officers, employees, agents, representatives or independent contractors. The Manager shall be designated by Investor. As of the Effective Date, the Manager is Jadian Real Estate Fund II GP, LLC, a Delaware limited liability company.

(b) The Manager may voluntarily withdraw from such position at any time upon written notice to all of the Members. A Person may be removed as the Manager by the Person(s) who have the right to designate the Manager in accordance with Section 6.01(a). Any vacancy in the Manager position shall be filled solely by the Person(s) who have the right to designate the Manager in accordance with Section 6.01(a).

(c) The Manager shall have the authority to appoint, in its sole and absolute discretion, Persons serving as officers, employees, agents, representatives or independent contractors of the Company, and to delegate to such Persons such powers, duties and responsibilities, including responsibility for the day-to-day operations of the Company and financial reporting and bookkeeping obligations on behalf of the Company and its Subsidiaries, in each case, as the Manager shall deem in its sole and absolute discretion to be in the best interests of the Company. Officers, employees, agents, representatives or independent contractors of the Company, designated as such in accordance with this Section 6.01(c), need not be Members and shall have the powers, duties and responsibilities delegated to them by the Manager; provided, however, that the Manager shall always retain the authority to make management decisions (or reverse any delegation) notwithstanding any delegation of duties by the Manager to any such officers, employees, agents, representatives or independent contractors. Any officer, employee, agent, representative or independent contractor of the Company shall serve at the pleasure of the Manager, and may be removed or replaced, with or without cause, from time to time, by the Manager, subject to Applicable Law and to any restrictions contained in any separate agreement between the Company and any such officer, employee, agent, representative or independent contractor.

6.02. Action by Written Consent.

Except as otherwise expressly required in this Agreement or in the Act, any action permitted or required by the Act or this Agreement to be taken by the Manager or the Members may be taken without a

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

meeting if a consent in writing, setting forth the action taken, is signed by the Manager or at least the minimum number of Members necessary to authorize such action, as the case may be.

6.03. Reserved Powers of the Manager.

Notwithstanding the delegation by the Manager to any officer, employee, agent, representative or independent contractor of the Company or any Subsidiary thereof of any powers, duties and responsibilities pursuant to Section 6.01(c) or otherwise, and without limitation of any other voting, consent or approval rights of the Manager, the following actions shall be reserved solely and exclusively to the Manager, and none of such employees, officers, agents, representatives or independent contractors shall have the power to initiate, commence, agree, commit, negotiate, or otherwise undertake any such actions, or to cause the Company or any Subsidiary to undertake the following actions (and where applicable in this Section 6.03, the term "Company" will be deemed to include "or any of its Subsidiaries or Affiliates"), directly or indirectly, through any Subsidiary, Affiliate or otherwise without the prior written consent of the Manager, which may be withheld, conditioned or delayed in its sole and absolute discretion:

(a) the conduct of business outside of the ordinary course of business, including the entry into any line of business other than the business described in clause (a) of Section 2.05;

(b) the entry into any contract or transaction with any Affiliate or any Member, Manager, officer or employee of the Company or any Affiliate of any such Person, including the sale or purchase of any assets to or from any such Person, or a merger, consolidation, recapitalization, reclassification, or other fundamental transaction involving any such Person;

(c) the creation and/or issuance of any Membership Interests, Units or other Securities, including an Initial Public Offering of the Company;

(d) the admission of an additional Member or substitute Member, or the withdrawal of any Member from the Company or the termination of any Membership Interest of any Member, or the repurchase or redemption of any Membership Interests or any other equity interests;

(e) the Transfer of any Membership Interests (other than a Permitted Transfer) and/or the release of any obligation or liability of any Member under this Agreement in connection with any Transfer of any Membership Interests or otherwise, the declaration or payment of any distributions or dividends, or any Sale of the Company;

(f) the formation of any Subsidiary (which approval may be email);

(g) the formation of or entry into a joint venture, partnership, limited liability company agreement or material business alliance with, or acquisition of any interest in, or contribution of capital to, any Person, or other similar arrangement with any Person and any amendments, supplements or other modifications thereto;

(h) the establishment and approval of the budget and the business plan for the Company for each Fiscal Year, or any amendment, supplement or other modification to the Approved Annual Budget for any Fiscal Year;

(i) during any Fiscal Year, the incurrence of any liability and/or making of any expenditure that (i) exceeds by more than ten percent (10%) the line-item amount of such liability or expenditure specified in the Approved Annual Budget for such Fiscal Year, or (ii) causes aggregate liabilities and expenditures for such Fiscal Year to exceed the aggregate Approved

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Annual Budget by more than five percent (5%);

(j) any acquisitions of material assets, directly or indirectly, by the Company, not provided for in the Approved Annual Budget;

(k) any sale, transfer, conveyance or other disposition of material assets, not provided for in the Approved Annual Budget;

(l) (i) the adoption of any compensation or severance arrangement, plan, policy or procedure or any amendment thereto or modification thereof, or any benefits arrangement, plan, policy or procedure or any amendment thereto or modification thereof, (ii) the approval or adoption of any employee or management equity incentive plan or the reservation of or grant of any equity securities thereunder, (iii) the establishment of or modification to any compensation or other employment arrangements for any senior management of the Company or any Subsidiary thereof or (iv) the hiring, firing, suspension (with or without pay) or material decrease or diminution of the duties and responsibilities of any officer or senior management of the Company;

(m) the guarantee of any indebtedness of any Person, in each case except as set forth in the Approved Annual Budget for such Fiscal Year;

(n) the incurrence of any indebtedness for borrowed money during the Fiscal Year in excess of the amounts, if any, set forth in the Approved Annual Budget for such Fiscal Year;

(o) [Intentionally Omitted];

(p) the grant or allowance of the creation of any liens on any property or assets of the Company or any Membership Interests, to the extent not explicitly provided for in the Approved Annual Budget;

(q) any change of the corporate structure or type of entity of the Company or any Subsidiary or any change of any material tax elections in connection with the Company or any Subsidiary;

(r) the commencement or settlement of any litigation by or with respect to the Company, if, as a result thereof, the Company or any Subsidiary would be obligated to pay, receive or relinquish claims worth more than one dollar ($1.00) (including any related fees or expenses);

(s) the entry into or amendment, modification or renewal of any Material Agreement, including the Asset Management Agreement;

(t) the hiring or firing of any accounting firm, law firm or other legal advisor, or financial advisor to provide accounting, legal or financial services, as applicable, to the Company or any Subsidiary;

(u) the filing of a voluntary petition, or the initiation of proceedings, to have the Company adjudicated bankrupt or insolvent; the consenting to the institution of bankruptcy or insolvency proceedings against the Company; the filing of a petition seeking or consenting to reorganization of the Company as debtor under any applicable federal or state law relating to bankruptcy, insolvency or other relief for debtors; or seeking or consenting to the appointment of any trustee, receiver, conservator, assignee, sequestrator, custodian, liquidator (or other similar

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

official) of the Company or of all or any substantial part of its properties and assets;

(v) the relocation of the Company's principal place of business;

(w) any amendment or other modification to the Certificate of Formation, this Agreement or any other governing document of the Company;

(x) the discontinuance of the preparation of annual audited financial statements by the Company Accountant; or

(y) the entrance into any commitment or contractual obligation to take any of the actions set forth above in this Section 6.03.

The Members acknowledge and agree that for so long as the Investor Members are Members of the Company, JREF II Aggregator has been appointed by the Investor Members as their lead investor and as the exclusive representative of Investor with the sole power to exercise any of the rights granted to Investor under this Agreement, including, without limitation, the rights of Investor under the foregoing provisions of this Section 6.03 and under Section 6.01 and Section 7.08. Accordingly, any action taken or vote or other writing executed by JREF II Aggregator will be fully binding on behalf of all Investor Members for all purposes under this Agreement. Notices, demands, consents, requests or other communications to be given or received by JREF II Aggregator will be deemed given or received by all of the Investor Members and will be binding on all of the Investor Members as if given or received by each of them. Notwithstanding the foregoing, the Investor Members shall be jointly and severally liable to the Parakeet Member for the obligations of Investor under this Agreement.

6.04. Certain Waivers of Fiduciary Duties.

(a) To the fullest extent permitted by Applicable Law (including Section 18-1101 of the Act), notwithstanding any other provision of this Agreement or otherwise of Applicable Law, neither the Manager nor the Investor Members (including Investor) (collectively, the "Covered Persons"), shall have any fiduciary duty to the Company, the Manager, or any Member by reason of this Agreement or in its capacity as a Covered Person, nor shall any Covered Persons have any fiduciary duty to any third party lenders, except that the Covered Persons shall be subject to the implied contractual covenant of good faith and fair dealing. To the fullest extent permitted by applicable law (including Section 18-1101 of the Act) and except as provided in Section 6.05, no Covered Person shall be liable, including under any legal or equitable theory of fiduciary duty or other theory of liability, to the Company, any Manager or any Member. The provisions of this Agreement, to the extent that they restrict or eliminate the duties and liabilities of the Covered Persons otherwise existing at law or in equity, are agreed by the parties hereto to replace such other duties and liabilities of the Covered Persons.

(b) Each Manager and Member shall be fully protected in relying in good faith upon the records of the Company and upon such information, opinions, reports or statements presented to the Company by any Person as to matters which the Manager or such Member reasonably believes are within such Person's professional or expert competence.

6.05. Liability of Parties.

To the extent not inconsistent with Applicable Law, neither any Manager, any Member nor any Member Representative, nor any of their respective officers, directors, employees, partners, members, shareholders or Affiliates, nor any officer of the Company or any Subsidiary thereof shall be liable, responsible or accountable in damages or otherwise to the Company or to any Member for any action taken

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or for any failure to act on behalf of the Company in connection with the business or operations of the Company, if the Person acted in good faith and in a manner the Person reasonably believed to be in or not opposed to the best interests of the Company, and, with respect to any criminal action or proceeding, had no reasonable cause to believe the Person's conduct was unlawful.

6.06. Indemnification.

(a) To the extent not inconsistent with Applicable Law, the Company shall indemnify and hold harmless the Manager, the Members and the Member Representative and all of their respective Affiliates, officers, directors, managers, employees, partners, members, shareholders and agents, and all of the officers of the Company and its Subsidiaries and designees on the board of managers (or similar governing body) of any Subsidiary of the Company (each, an "Indemnitee"), from any loss, liability, damage or expense (including, but not limited to, any judgment, award or settlement and reasonable attorneys' costs, expenses and fees, costs and expenses of investigation, and other costs or expenses incurred in connection with the defense of any actual or threatened action, proceeding or claim) arising out of (i) any acts or omissions or alleged acts or omissions in connection with an Indemnitee's activities or the activities of any of an Indemnitee's respective employees or agents on behalf of the Company or any Subsidiary thereof or while serving in any capacity for any other Person at the direction of the Company or any Subsidiary thereof, or in connection with the business or operations of the Company or any Subsidiary thereof, and (ii) any liability imposed upon any Indemnitee under any statute, rule or regulation (including, but not limited to, any statute, rule or regulation relating to environmental matters) applicable to the Company or any Subsidiary thereof or any other Person for whom they are serving in any capacity at the direction of the Company or any Subsidiary thereof, or their respective officers, directors or employees; provided that the Manager has determined that the acts or omissions or the alleged acts or omissions upon which the action or threatened action, proceeding or claim is based were undertaken in good faith and in the best interests of the Company. Reasonable expenses incurred by any such Indemnitee in connection with the matters referred to above may be paid or reimbursed by the Company in advance of the final disposition of the proceeding, regardless of whether the Company, a Member, or an Affiliate of the Company or Member, has asserted claims against the Indemnitee, upon receipt by the Company of (x) a written affirmation by the Indemnitee of his or its good faith belief that he or it met the standard of conduct necessary for indemnification by the Company, and (y) a written undertaking by or on behalf of the Indemnitee to promptly repay such amount if it shall ultimately be determined by a court of competent jurisdiction (not subject to further appeal) that he or it has not met that standard of conduct. The foregoing indemnification rights will be in addition to and not in lieu of any other contractual rights to indemnification granted to any Person by the Company or any Subsidiary thereof.

(b) The Company hereby acknowledges that any Indemnitee employed by or acting on behalf of the Investor Members (including Investor) may have certain rights to indemnification, advancement of expenses and/or insurance provided by the Investor Members and certain of its Affiliates (collectively, the "Fund Indemnitors"). The Company hereby agrees (i) that it is the indemnitor of first resort (*i.e.*, its obligations to Indemnitee are primary and any obligation of the Fund Indemnitors to advance expenses or to provide indemnification for the same expenses or liabilities incurred by Indemnitee are secondary), (ii) that it shall be required to advance the full amount of reasonable expenses incurred by Indemnitee and shall be liable for the full amount of all such reasonable expenses, judgments, penalties, fines and amounts paid in settlement to the extent legally permitted and as required by the terms of this Agreement (or any other agreement between the Company and the Indemnitee), subject to the Company's receipt of the written affirmation and written undertaking by the Indemnitee required by clauses (x) and (y) of Section 6.06(a), without regard to any rights Indemnitee may have against the Fund Indemnitors, and (iii) that it irrevocably waives, relinquishes and releases the Fund Indemnitors from any and all claims against the Fund Indemnitors for contribution, subrogation or any other recovery of any kind in respect thereof. The Company further agrees that no advancement or payment by the Fund Indemnitors on behalf of Indemnitee

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with respect to any claim for which Indemnitee has sought indemnification from the Company shall affect the foregoing and the Fund Indemnitors shall have a right of contribution and/or be subrogated to the extent of such advancement or payment to all of the rights of recovery of Indemnitee against the Company.

6.07. Confidentiality; Non-Competition; Non-Solicitation; No Hire.

Except as otherwise provided in this Section 6.07, as an inducement for each of the Members to enter into this Agreement and in order to protect and preserve the legitimate business interests of each of the Members and the goodwill to be developed by and acquired by the Company in its business, each of the Members, Austin Berk and Jonathan Wyss agree to the provisions of this Section 6.07. For the avoidance of doubt, the provisions of this Section 6.07 shall apply to each of Austin Berk and Jonathan Wyss in their individual capacity, and all references to "Member" in this Section 6.07 shall be deemed to apply to them as indirect owners of the Parakeet Member.

(a) Confidentiality. From the Effective Date until the earliest to occur of (x) the dissolution of this Company pursuant to Section 9.01(a), and (y) three (3) years after a Member (other than an Exempt Entity) ceases to own its Membership Interest (except due to a dissolution pursuant to Section 9.01(a))(the "Restricted Period"), each Member (other than an Exempt Entity) (including, for the duration of the Restricted Period, any Person who has ceased to own any Membership Interest (except due to a dissolution pursuant to Section 9.01(a)) shall not, and shall use commercially reasonable efforts to cause its Affiliates and Representatives (as defined below) not to, except as explicitly permitted under any other written agreement duly signed by both the Company and such Member and as permitted below, (i) use for any purpose, (ii) disclose to any Person, or (iii) keep or make copies of documents, tapes, discs or programs containing, any Confidential Information concerning the business of the Company or any of its Subsidiaries (except to the extent required to comply with Applicable Law or court order or Governmental Authority); provided, however, that nothing herein shall prohibit such Member from using or disclosing any such Confidential Information which: (x) at the time of its use or disclosure is, through no fault of such Member in violation hereof, part of the public domain by publication or otherwise; (y) was not acquired, directly or indirectly, subject to any confidentiality obligation to the Company or its Affiliates; provided, that with respect to each Member (other than an Exempt Entity), the exception in this clause (y) shall not apply to any Confidential Information to the extent such Confidential Information is used in the business of or directly held by the Company or any of its Subsidiaries; or (z) is required or requested to be disclosed by such Member pursuant to Applicable Law or court order or Governmental Authority, in which case, such Member gives written notice to the Company or the applicable Member, prior to any such disclosure to the extent permitted by Applicable Law. Notwithstanding anything contained in this Agreement to the contrary, each Member (other than an Exempt Entity) shall be entitled to disclose Confidential Information to such Member's advisors, agents, employees, officers, directors, accountants, attorneys and other representatives (collectively, "Representatives") or its existing or prospective Affiliates, Subsidiaries, partners, members, stockholders, or limited and general partners, in each case, so long as such Persons agree to keep such Confidential Information confidential in accordance with the terms of this Section 6.07(a), such Member is liable for any and all breaches of such agreement by each of such Persons, and such disclosure is not to an entity that competes with the Company. For the avoidance of doubt, except to the extent expressly set forth herein, nothing contained in this Section 6.07(a) shall prohibit any Member from using or disclosing its own Confidential Information for any purpose at any time. For purposes hereof, "Confidential Information" shall, with respect to the designated Person, mean and include, without limitation, all intellectual property, trade secrets, reports, financial information, business plans, customers and/or suppliers lists and customer and/or supplier information, and all other information concerning such Person's business and marketing methods used in connection with its business, not previously disclosed to the public directly by such designated Person, whether or not marked or delineated as confidential or the equivalent.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(b) Non-Competition. During the Exclusivity Period, each Member (other than an Exempt Entity and except as may be set forth in the Offer Letters, which shall govern and supersede in the event of any conflict with this Section 6.07(b)) shall not, and shall cause each of its Affiliates not to, directly or indirectly, engage in any Competitive Activity, other than as a Manager or Member of the Company acting in such capacity for the sole, exclusive and direct benefit of the Company and its Subsidiaries, as contemplated by this Agreement. The term "Competitive Activities" as used herein shall mean (A) engaging in the business described in clause (a) of Section 2.05 or any other business which is conducted by the Company or any of its Subsidiaries after the Effective Date; or (B) serving as a shareholder, officer, director, member, manager, trustee or partner of, or consulting with, advising or assisting in any way, whether or not for consideration, any corporation, partnership, firm, proprietorship or other business organization which is then or is then reasonably expected to become a competitor of the Company and its Subsidiaries with respect to the business described in clause (A). The term "Competitive Activities" shall not include (together with all Affiliates) the ownership of securities of entities which are listed on a national securities exchange or traded in the national over-the-counter market in an amount which shall not exceed five percent (5%) of the outstanding shares of any such entity and (ii) Existing Activities.

(c) Non-Solicitation; No-Hire. Each of the members, For a period of twenty-four (24) months after a Member's employment with the Company is terminated, such Member (other than an Exempt Entity and except as may be set forth in the Offer Letters, which shall govern and supersede in the event of any conflict with this Section 6.07(c)) shall not, and shall cause his, her or its Affiliates not to, directly or indirectly: (i) employ, engage, contract for or solicit the services in any capacity of any Person that is or was (at any time within the twelve (12) months prior to the attempted hiring), employed by or providing services as an employee, agent, independent contractor or consultant to, including, without limitation, any coach, instructor or facilitator, the Company or any of its Subsidiaries; or (ii) for such Member's own account or on behalf of any other Person, solicit, divert, take away or attempt to take away, any of the customers, clients, vendors, suppliers or other business partners of the Company or any of its Subsidiaries or in any way interfere with, disrupt or attempt to disrupt any of the then-existing relationships between, the Company or any of its Subsidiaries and any of their respective customers, clients, vendors, suppliers or other business partners.

(d) Scope; Interpretation. The Members acknowledge that the Company conducts business throughout the United States and agree that the geographic scope of Sections 6.07(b) and (c) shall extend to each state and to each geographic area outside of the United States in which the Company conducts business and in each other state and geographic area outside of the United States in which the Company plans to conduct business within twelve (12) months of the date of determination, and each of Sections 6.07(b) and (c) shall be deemed a separate covenant in each such state. In the event a court of competent jurisdiction determines that the provisions of Sections 6.07(b) and (c) and this Section 6.07(d) are excessively broad as to duration, geographical scope or activity, it is expressly agreed that this Section 6.07 shall be construed so that the remaining provisions shall not be affected, but shall remain in full force and effect, and any such overbroad provisions shall be deemed, without further action on the part of any person, to be modified, amended and/or limited, but only to the extent necessary to render the same valid and enforceable in such jurisdiction.

(e) Equitable Relief for Violations. The parties agree that the provisions and restrictions contained in this Section 6.07 are necessary to protect the legitimate continuing interests of the Company and its Subsidiaries, and that any violation or breach of these provisions will result in irreparable injury to the Company and its Subsidiaries, as applicable, for which monetary damages or any other remedy at law would be inadequate and that, in addition to any relief at law which may be available to the Company and its Subsidiaries for such violation or breach and regardless of any other provision contained in this Agreement, the Company and its Subsidiaries shall be entitled to temporary and permanent injunctive relief (without the necessity of having to prove actual damages therefrom or post a bond therefore) and such other equitable relief as a court may grant.

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6.08. Corporate Opportunities.

Each of the parties hereto expressly acknowledges and agrees that notwithstanding any duty hereunder or that may otherwise exist at law or in equity, to the fullest extent permitted by Applicable Law, each of the Exempt Entities has the right to, and shall have no duty (contractual, fiduciary or otherwise) not to, directly or indirectly engage in any business, business activity or line of business, including those that are the same or similar to those of the Company or any of its Subsidiaries or may be deemed to be competing with the Company or any of its Subsidiaries by virtue of any equity ownership in the Company or service as the Manager; and in the event that any Exempt Entity acquires knowledge of a potential transaction or matter that may be a corporate opportunity (as that term is commonly used under Delaware law) for any of the Company and/or one or more of its Subsidiaries, on the one hand, and such Exempt Entity, on the other hand, such Exempt Entity shall have no duty (contractual, fiduciary or otherwise) to communicate or present such corporate opportunity to the Company or any of its Subsidiaries, as the case may be, by virtue of any equity ownership in the Company or service as the Manager, and may pursue such corporate opportunity independent of the Company and the other Members, in which case, neither the Company nor any other Members shall have any interest therein.

ARTICLE VII

RESTRICTIONS ON TRANSFERS

7.01. Restrictions on Transfers.

Except as otherwise permitted by this Agreement, no Member shall, directly or indirectly, Transfer any Membership Interests or rights under this Agreement without the prior written consent of the Manager, which consent may be granted or withheld in the absolute and unreviewable discretion of the Manager. In addition, except as otherwise permitted by this Agreement, any Member that is not a natural person shall not cause or permit any interest, direct or indirect, in itself to be Transferred without the prior written consent of the Manager, which consent may be granted or withheld in the absolute and unreviewable discretion of the Manager.

7.02. Permitted Transfers.

Subject to compliance with this Section 7.02 and Section 7.03, a Member (other than MIP LLC) shall be free at any time to Transfer (each, a "Permitted Transfer"), without having to obtain the consent required under Section 7.01 all or any portion of such Member's Membership Interest to (each, a "Permitted Transferee"):

(a) in the case of a Member that is a natural person, any one or more of an existing Member's Family Members; provided, however, that such Family Member may not subsequently Transfer such Membership Interests to any Affiliate of such Family Member except as provided in this Section 7.02;

(b) in the case of a Member that is not a natural person, a wholly owned Subsidiary of such Member;

(c) in the case of each of the Investor Members, any Person; or

(d) a Third Party Purchaser in accordance with the provisions set forth in Section 7.08.

Any trust, estate or personal representative that has received a Membership Interest from a Member may Transfer the Membership Interest to a beneficiary of such trust or estate; provided, that, the beneficiary is

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a Family Member of the Member who transferred the Membership Interest to the trust, estate or personal representative. A Member that is a natural person also may Transfer his Membership Interest to such Member's estate or heirs upon his death or involuntarily by operation of law. For purposes of this Article VII, a Member's "Family Members" shall mean the Member's spouse, ancestors, issue (including adopted children and their issue) and trusts, estates, custodianships or other estate planning structures (x) for the primary benefit of one or more of the Member himself or any spouse, ancestors, or issue (including adopted children and their issue) or (y) created by such Member for bona fide estate planning or similar purposes.

7.03. Conditions to Transfer.

Notwithstanding anything contained in this Agreement to the contrary (other than Section 7.08), no Transfer shall be permitted (including any Permitted Transfers under Section 7.02) unless the following additional conditions precedent are satisfied (or waived by the Manager):

(a) the transferor (except in the case of death or an involuntary Transfer by operation of law) and transferee shall execute and deliver to the Company such documents and instruments of conveyance as may be necessary or appropriate in the opinion of counsel to the Company or determined by the Manager to effect such Transfer and to confirm the agreement of the transferee to be bound by the provisions of this Agreement (including this Article VII and Section 13.09);

(b) the transferor (except in the case of death or an involuntary Transfer by operation of law) shall furnish to the Company an opinion of counsel that the proposed transfer will not cause the Company to be treated other than as a partnership for U.S. tax purposes, including but not limited pursuant to the "publicly traded partnership" rules under Code Section 7704 and the Regulations promulgated thereunder;

(c) the Manager shall have received such information in connection with the Transfer as the Manager reasonably determines appropriate to conclude that the Transfer will not result in a withholding obligation on the Company under Section 1446(f) of the Code; and

(d) the transferor (except in the case of death or an involuntary Transfer by operation of law) shall provide an opinion of counsel satisfactory to the Company to the effect that such Transfer will not violate any applicable securities laws regulating the transfer of securities or any of the provisions of any agreement to which the Company is a party.

7.04. Rights of Non-Admitted Transferee.

Notwithstanding anything contained in this Agreement to the contrary, a transferee of a Membership Interest who is not admitted as a Member pursuant to Section 7.05 shall be entitled to allocations and distributions attributable to the Membership Interest Transferred to the same extent as if the transferee were a Member, but shall have no right to participate in the management of the Company, to designate a Manager or to vote or give a consent on any matter calling for the approval or consent of the Members (and any requisite percentage or majority shall be computed as if the Transferred Membership Interest did not exist), shall have no right to any information or accounting of the affairs of the Company, shall not be entitled to inspect the books or records of the Company, shall be subject to the drag-along rights, and shall not have any preemptive rights or other rights of a Member under the Act or this Agreement. For the avoidance of doubt, this Section 7.04 shall in no event legitimize or otherwise validate any Transfer of Membership Interests made in violation of this Agreement.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

7.05. Admission of Transferee as Member.

Subject to the other provisions of this Article VII, a transferee of a Membership Interest may be admitted to the Company as a Member only upon satisfaction of all of the following conditions:

(a) the Manager shall consent to such admission, which consent may be granted or withheld in the absolute and unreviewable discretion of the Manager;

(b) the Membership Interest with respect to which the transferee is admitted was acquired by means of a Transfer permitted under Section 7.01 or 7.02;

(c) the transferee becomes a party to this Agreement as a Member and executes such documents and instruments as the Company reasonably may request as necessary or appropriate to confirm such transferee as a Member in the Company and such transferee's agreement to be bound by the terms and conditions hereof; and

(d) the transferee furnishes copies of all instruments effecting the Transfer, opinions of counsel and such other certificates, instruments and documents as the Manager may require.

7.06. Effect of Disposition.

Following any Transfer of a Member's entire Membership Interest, the Member shall have no further rights as a Member of the Company other than with respect to rights and claims arising prior to such time, except to the extent such rights were expressly included in such Transfer. In addition, following any Transfer permitted under this Article VII, including a Permitted Transfer, the Member shall have no further rights as a Member of the Company with respect to that portion Transferred. Notwithstanding anything contained in this Agreement to the contrary, upon a Transfer to a transferee that has been admitted as a Member in accordance with this Agreement, except to the extent otherwise provided in the instruments of Transfer which were approved by the Manager, such transferee shall be entitled to all rights of the Transferring Member then outstanding under this Agreement with respect to the Units or other Securities Transferred, including participation rights and all other rights and this Agreement will be read with the required changes to effect the intent of this provision.

7.07. Prohibited Transfers.

Any purported Transfer that is not permitted under this Article VII shall be null and void and of no effect whatsoever. In the case of a Transfer or attempted Transfer that is not such a permitted Transfer, the parties engaging or attempting to engage in such Transfer shall be liable to indemnify and hold harmless the Company and the other Members from all cost, liability, and damage that any of such indemnified persons may incur (including incremental tax liability and attorneys' fees and expenses) as a result of such Transfer or attempted Transfer and efforts to enforce the indemnity granted hereby.

7.08. Drag-Along Rights.

(a) If at any time and from time to time after the Effective Date, Investor proposes any transaction with any third party purchaser or purchasers (collectively, the "Third Party Purchaser") involving the sale of Units by any of the Investor Members (a "Drag-Along Sale"), then, provided that such Drag-along Sale is approved by the Manager, Investor may require each of the other Members, subject to Section 7.08(b) (each, a "Drag-Along Seller" and collectively, the "Drag-Along Sellers") to participate in such Drag-Along Sale in accordance with and subject to this Section 7.08. In order for Investor to exercise the drag-along right pursuant to this Section 7.08, Investor shall give notice (the "Drag-Along Sale Notice") to all of

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

the Drag-Along Sellers specifying (i) the identity of the prospective Third Party Purchaser, (ii) the consideration to be received by the Drag-Along Sellers and any other material terms and conditions of the proposed Drag-Along Sale, (iii) the date of anticipated closing of the Drag-Along Sale, and (iv) the action or actions requested or required, as and to the extent known, by Investor or the Third Party Purchaser in the proposed Drag-Along Sale of each Drag-Along Seller (without limiting those that may be requested or required in the future) in order to complete or facilitate such proposed Drag-Along Sale.

(b) At the request of Investor, each Drag-Along Seller shall sell to the prospective Third Party Purchaser, simultaneously with the sale by each other Drag-Along Seller, on the same terms and conditions, the same percentage of their respective Units as the percentage of the Units then held by each other Drag-Along Seller being sold by each other Drag-Along Seller, subject this Section 7.08 and any rollover requirement imposed by any Third Party Purchaser (which shall be the same form of security as Investor). In the event that the Securities to be Transferred pursuant to the Drag-Along Sale Notice include Units of different classes or series, the consideration received by the Initiating Drag-Along Parties and the Drag-Along Sellers in such Drag-Along Sale in respect of such different classes or series of Units shall be allocated among them in accordance with Section 5.02.

(c) Upon the request of Investor, each of the Drag-Along Sellers shall (i) execute and deliver a definitive purchase and sale agreement (which may include a full general release of claims and covenants not to sue by such Drag-Along Seller in favor of the Company, each other Member and each Manager and their respective Affiliates, non-solicit and other customary restrictive covenants with durations of not more than two (2) years following the closing of such Drag-Along Sale, as well as such indemnification obligations as Investor shall determine), in substantially the same form and substance as the definitive agreement executed and delivered by the applicable Investor Member(s); and (ii) take such other action or actions requested or required by Investor or the Third Party Purchaser in the proposed Drag-Along Sale of such Drag-Along Seller in order to complete or facilitate such proposed Drag-Along Sale (including the waiver of any related appraisal or dissenters' rights, if any) and otherwise cooperate with Investor and the Third Party Purchaser. Notwithstanding the foregoing, (1) any indemnification obligation of any Drag-Along Seller in connection with the Drag-Along Sale shall be several and not joint, shall be limited to the gross proceeds received by that Drag-Along Seller in the sale (except in connection with claims relating to fraud or willful misconduct on the part of such Drag-Along Seller), and shall be subject to the same caps, baskets, deductibles, exclusions, reductions, adjustments and other limitations on liability applicable to the applicable Investor Member(s) and (2) such Drag-Along Seller shall be obligated to enter into any post-transaction non-solicitation agreement as required by the Initiating Drag-Along Parties or Third Party Purchaser, in each case with durations of not more than two (2) years following the closing of such Drag-Along Sale, regardless of whether the applicable Investor Member(s) is or are required to enter into such agreements.

(d) At the closing of the proposed Drag-Along Sale, each Drag-Along Seller shall deliver, against receipt of the consideration payable in such transaction, such instruments of transfer acceptable to Investor. For the avoidance of doubt, each Member acknowledges and agrees to the right of the Company to hold back any portion of the proceeds in connection with a transaction pursuant to this Section 7.08 (including any proceeds reallocated pursuant to Section 7.08(b)) in order to satisfy any post-transaction indemnification, purchase price adjustment or other similar escrow or holdback obligation, so long as such amounts are allocated *pro rata* among all Drag-Along Sellers, based on their entitlement to the proceeds received therefrom under Sections 5.02 and 5.03.

(e) No Drag-Along Seller shall have any right to and shall not, without the prior written approval of Investor, communicate directly or indirectly with the Third Party Purchaser with respect to the terms of the Drag-Along Sale, or negotiate any terms of the Drag-Along Sale with the Third Party Purchaser in the Drag-Along Sale. If any Drag-Along Seller shall fail to execute and deliver the definitive

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

agreement based on the terms set forth in this Section 7.08, Investor shall have a power of attorney (which may be relied upon by the Third Party Purchaser in any such sale) and for that purpose such Drag-Along Seller, without any further action or deed, shall be deemed to have appointed, and does hereby so appoint, Investor as such Drag-Along Seller's agent and attorney-in-fact, with full power of substitution, for the purpose of executing and delivering the definitive agreement and all other agreements, documents, instruments and certificates in connection therewith, referenced in Section 7.08(b), in the name and on behalf of such Drag-Along Seller and performing all such action as may be necessary or appropriate to consummate the sale of the Drag-Along Seller's interest pursuant to that agreement.

(f) Notwithstanding anything contained in this Section 7.08 to the contrary, in the event that all or a portion of the consideration payable to the Drag-Along Sellers in such Drag-Along Sale consists of securities and the sale of such securities to the Drag-Along Sellers would require either a registration under the Securities Act or the preparation of a disclosure document pursuant to Regulation D under the Securities Act (or any successor regulation) or a similar provision of any state securities law, then, at the option of Investor, any one or more of the Drag-Along Sellers may receive, in lieu of such securities, the Fair Market Value of some or all of such securities in cash.

(g) In the event that a definitive agreement with respect to the Drag-Along Sale contemplated by a Drag-Along Sale Notice has not been executed by the parties thereto within two hundred seventy (270) days after the delivery of the Drag-Along Sale Notice for such Drag-Along Sale (subject to reasonable extension to the extent necessary to obtain required governmental or other approvals, as determined by Investor), then such Drag-Along Sale Notice shall be null and void, each Drag-Along Seller shall be released from its obligations under such Drag-Along Sale Notice and it shall be necessary for a separate Drag-Along Sale Notice to be furnished by Investor, and the other terms and provisions of this Section 7.08 separately complied with, in order to consummate a Drag-Along Sale pursuant to this Section 7.08.

(h) Notwithstanding anything contained in this Agreement to the contrary, the Transfers contemplated by this Section 7.08 shall not be restricted by the provisions of Section 7.01 or Section 7.02.

(i) In connection with the completion of the Drag-Along Sale, all transaction expenses reasonably incurred by the Company, any Drag-Along Seller or the Investor Members shall be borne by the Company.

(j) Notwithstanding anything contained herein to the contrary, if the applicable Investor Member(s) is or are entitled to receive rollover equity as all or part of the consideration in connection with a Drag-Along Sale and the Drag-Along Sellers are only entitled to receive cash as consideration in connection with such Drag-Along Sale, then unless, in the case of each Drag-Along Seller, such Drag-Along Seller (or its members or equity owners) is employed by the Company or an subsidiary at the time of such Drag-Along Sale, the form of consideration in such Drag-Along Sale offered to the applicable Investor Member(s) and the Drag-Along Sellers shall nonetheless be deemed to be the same, and any issuance of such rollover equity to the applicable Investor Member(s) shall not, in and of itself, cause such Drag-Along Sale to be on different terms and conditions.

(k) This Section 7.08 shall automatically terminate with respect to all Members immediately after the consummation of an Initial Public Offering of the Company and compliance with this Section 7.08.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

ARTICLE VIII

WITHDRAWAL

8.01. Restrictions on Withdrawal.

No Member shall withdraw from the Company as a Member or terminate its Membership Interest without the approval of the Manager.

ARTICLE IX

DISSOLUTION, LIQUIDATION, AND TERMINATION

9.01. Dissolution.

Subject to any other terms of this Agreement, the Company shall be dissolved automatically and its affairs shall be wound up on the first to occur of the following:

(a) at any time upon consent of all the Common Members;

(b) at any time upon the consent of the Manager; or

(c) ninety (90) days after the date on which the Company no longer has at least one (1) Member, unless a new Member is admitted to the Company during such ninety (90) day period.

9.02. Liquidation.

(a) Upon a dissolution of the Company requiring the winding-up of its affairs, the Manager (or, in its absence, the Members (other than MIP LLC) and all references to the Manager in this Article IX shall mean the Members (other than MIP LLC)) shall wind up its affairs. The assets of the Company shall be sold within a reasonable period of time to the extent necessary to pay or to provide for the payment of all debts and liabilities of the Company, and may be sold to the extent deemed practicable and prudent by the Manager. The Manager shall designate one or more Members (other than MIP LLC) to control the dissolution process, including the sale of the assets and distributions to the Members in accordance with this Article IX.

(b) The net assets of the Company remaining after satisfaction of all such debts and liabilities and the creation of any reserves under Section 9.02(e), shall be distributed to the Members in accordance with the distribution provisions of Section 5.02. Any property distributed in kind in the liquidation shall be valued at Fair Market Value.

(c) The allocations and distributions provided for in this Agreement are intended to result in the Capital Account balance of each Member immediately prior to the distribution of the Company's assets pursuant to this Section 9.02 being equal to the amount that would be distributable pursuant to Section 5.02. Notwithstanding anything contained in Article IV to the contrary, the Manager is authorized to make reasonable, appropriate adjustments to the allocation of items of income, gain, loss, and deduction as necessary to cause the balance of each Member's Capital Account immediately prior to the distribution of the Company's assets pursuant to this Section 9.02 to equal or to be as nearly equal as practicable to the amount that would be distributable to each Member pursuant to Section 5.02.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(d) Distributions to Members pursuant to this Article IX shall be made by the end of the taxable year of the liquidation, or, if later, ninety (90) days after the date of such liquidation in accordance with Regulations Section 1.704-1(b)(2)(ii)(g).

(e) The Manager may withhold from distribution under this Section 9.02 such reserves as are required by Applicable Law and such other reserves for subsequent computation adjustments and for contingencies, including contingent liabilities relating to pending or anticipated litigation or to Internal Revenue Service examinations. Any amount withheld as a reserve shall reduce the amount payable under this Section 9.02 and shall be held in a segregated interest-bearing account (which may be commingled with similar accounts). The unused portion of any reserve shall be distributed with interest thereon pursuant to this Section 9.02 after the Manager shall have determined that the need therefor shall have ceased.

(f) If a Member has a deficit balance in its Capital Account after giving effect to all contributions, distributions, and allocations for all taxable years, including the year in which the liquidation occurs, the Member shall have no obligation to make any contribution to the capital of the Company with respect to such deficit, and such deficit shall not be considered a debt owed by such Member to the Company or to any other Person, for any purpose whatsoever.

ARTICLE X

ALLOCATION RULES

10.01. Special Allocations.

(a) Minimum Gain Chargeback. Notwithstanding any other provision of Article IV or this Article X, except to the extent that Regulations Section 1.704-2(f) (or any other applicable authority) provides an exception to the operation of the minimum gain chargeback requirement of the Regulations, if there is a net decrease in Company Minimum Gain during any Accounting Period, each Member shall be specially allocated items of income and gain for such Accounting Period in an amount equal to such Member's share of the net decrease in the Company's Minimum Gain (within the meaning of Regulations Section 1.704-2(g)(2)), determined in accordance with Regulations Section 1.704-2(g). In the event that the minimum gain chargeback requirement imposed by this Subsection and Regulations Section 1.704-2(f) exceeds the Company's income and gains for the Accounting Period, the excess shall be treated as a minimum gain chargeback requirement, and shall be specially allocated under this Subsection, in the immediately succeeding Accounting Periods until fully charged back. Allocations pursuant to this Section 10.01(a) shall be made in proportion to the respective amounts required to be allocated to each Member pursuant hereto. The items to be allocated shall be determined in accordance with Regulations Sections l.704-2(f)(6) and 1.704-2(j). This Section 10.01(a) is intended to comply with the minimum gain chargeback requirement in the Regulations and shall be interpreted consistently therewith.

(b) Member Nonrecourse Debt Minimum Gain Chargeback. Notwithstanding any other provision of Article IV or this Article X, except to the extent that Regulations Section 1.704-2(i)(4) (or any other applicable authority) provides an exception to the operation of the partner nonrecourse debt minimum gain chargeback requirement of the Regulations, if there is a net decrease in Member Nonrecourse Debt Minimum Gain attributable to a Member Nonrecourse Debt during any Accounting Period, each Member who has a share of the Member Nonrecourse Debt Minimum Gain attributable to such Member Nonrecourse Debt, determined in accordance with Regulations Section 1.704-2(i)(5), as of the beginning of that Accounting Period, shall be specially allocated items of income and gain for such Accounting Period (and, if necessary, succeeding Accounting Periods) in an amount equal to such Member's share of the net decrease in Member Nonrecourse Debt Minimum Gain. A Member's share of the net decrease in Member Nonrecourse Debt Minimum Gain shall be determined in a manner consistent with the provisions of

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

Regulations Sections 1.704-2(j)(2) and 1.704-2(i)(4). Allocations pursuant to this Subsection shall be made in proportion to the respective amounts required to be allocated to each Member pursuant to this Subsection and Regulations Section 1.704-2(i)(4). The items to be so allocated shall be determined in accordance with Regulations Sections 1.704-2(i)(4) and (j)(2). This Section 10.01(b) is intended to comply with the partner nonrecourse debt minimum gain chargeback requirement in the Regulations and shall be interpreted consistently therewith.

(c) Qualified Income Offset. If any Member unexpectedly receives any adjustments, allocations, or distributions described in Regulations Sections 1.704-1(b)(2)(ii)(d)(4), (5), and (6), items of income and gain (consisting of a *pro rata* portion of each item of income, including gross income and gain) shall be specially allocated to that Member in an amount and manner sufficient to eliminate any Adjusted Capital Account Deficit created by such adjustments, allocations, or distributions as quickly as possible; provided, however, that an allocation pursuant to this Subsection shall be made only if and to the extent that such Member would have an Adjusted Capital Account Deficit after all other allocations provided for in this Article X (including, for avoidance of doubt, allocations pursuant to Section 10.01(d) below) have been tentatively made as if this Subsection were not a part of this Agreement.

(d) Gross Income Allocation. If any Member has a deficit Capital Account at the end of any Accounting Period that is in excess of the sum of the amount such Member is obligated to restore, or the amount such Member is deemed obligated to restore pursuant to the next to last sentences of Regulations Section 1.704-2(g)(l) and Section 1.704-2(i)(5), the Member shall be specially allocated items of income and gain in the amount of such excess as quickly as possible; provided, however, that an allocation pursuant to this Subsection shall be made only if and to the extent that such Member would have a deficit Capital Account in excess of such sum after all other allocations provided for in this Article have been tentatively made as if this Subsection and the qualified income offset provision set forth in the preceding Subsection were not a part of this Agreement.

(e) Code Section 754 Adjustments. To the extent an adjustment to the adjusted tax basis of any asset of the Company pursuant to Code Section 734(b) or Code Section 743(b) is required, pursuant to Regulations Section 1.704-1(b)(2)(iv)(m)(2) or (4), to be taken into account in determining Capital Accounts as a result of a distribution to a Member in complete liquidation of its interest in the Company, the amount of such adjustment to the Capital Accounts of the Members shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases such basis), and such gain or loss shall be specially allocated to the Members in accordance with their interests in the Company in the event Regulations Section 1.704-1(b)(2)(iv)(m)(2) applies, or to the Member to whom such distribution was made in the event Regulations Section 1.704-1(b)(2)(iv)(m)(4) applies.

(f) Nonrecourse Deductions. Nonrecourse Deductions for any Accounting Period shall be specially allocated to the Members in the same manner that Profits and Losses are allocated under Article IV for the applicable Accounting Period.

(g) Member Nonrecourse Deductions. Any Member Nonrecourse Deductions for any Accounting Period shall be specially allocated to the Member who bears the economic risk of loss with respect to the Member Nonrecourse Debt to which such Member Nonrecourse Deductions are attributable in accordance with Regulations Section 1.704-2(i).

(h) Corrective Allocations. The allocations set forth in the preceding Subsections of this Section 10.01 (the "Regulatory Allocations") are intended to comply with certain requirements of the Regulations. It is the intent of the Members that, to the extent possible, all Regulatory Allocations shall be offset either with other Regulatory Allocations or with special allocations of other items of income, gain, loss, or deduction pursuant to this Section 10.01(h). Therefore, notwithstanding any other provision of

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

Article IV or this Article X (other than the Regulatory Allocations), the Manager shall make such offsetting special allocations of income, gain, loss, or deduction in whatever manner it determines to be appropriate so that, after such offsetting allocations are made, each Member's Capital Account balance is, to the extent possible, equal to the Capital Account balance such Member would have had if the Regulatory Allocations were not part of this Agreement and all items were allocated pursuant to Article IV. In making any allocation under this Section 10.01(h), the Manager shall take into account future Regulatory Allocations under Sections 10.01(a) and (b) that, although not yet made, are likely to offset other Regulatory Allocations previously made under Sections 10.01(f) and 10.01(g).

10.02. Code Section 704(c).

(a) In accordance with Code Section 704(c) and the Regulations thereunder, income, gain, loss, and deduction with respect to any property contributed (or deemed contributed for federal income tax purposes) to the capital of the Company, solely for tax purposes shall be allocated among the Members so as to take account of any variation between the adjusted basis of such property to the Company for federal income tax purposes and its initial Gross Asset Value. If the Gross Asset Value of any asset of the Company is revalued pursuant to Section 3.08(b), subsequent allocations of income, gain, loss and deduction with respect to such asset shall take account of any variation between the adjusted basis of such asset for federal income tax purposes and its Gross Asset Value in the same manner as under Code Section 704(c) and the Regulations thereunder.

(b) Any elections or other decisions relating to allocations made under this Section 10.02 shall be made in any manner that reasonably reflects the purpose and intention of this Agreement. Allocations pursuant to this Section 10.02 are solely for income tax purposes and shall not affect or in any way be taken into account in computing, any Person's share of Profits, Losses, or other items or distributions pursuant to any provision of this Agreement.

(c) The provisions of this Section 10.02 are intended to comply with Code Section 704(c) and the Regulations promulgated thereunder. The Manager shall make any modifications to this Agreement as may be required to comply with Code Section 704(c) and the Regulations thereunder.

10.03. Other Allocation Rules.

(a) Except as otherwise provided in this Agreement, items of taxable income, gain, loss, deduction, and credit shall be allocated among the Members for income tax purposes in a manner consistent with the allocations made for "book purposes" under Article IV and this Article X. Taxable income or loss for any Accounting Period that is not allocated pursuant to the preceding sentence and that is not otherwise allocated pursuant to Article IV or this Article X shall be allocated among the Members for tax purposes in the same proportion that Profit or Loss has been allocated for that Accounting Period under Article IV.

(b) For purposes of determining the Profits, Losses, or any other items allocable to any Accounting Period, Profits, Losses, and any such other items shall be determined on a daily, monthly, or other basis, as determined by the Manager using any permissible method under Code Section 706 and the Regulations thereunder.

(c) Except as otherwise provided in this Agreement, all items of income, gain, loss, deduction, and any other allocations not otherwise provided for shall be divided among the Members in the same proportions as they share Profits or Losses, as the case may be, for the applicable Accounting Period.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(d) Notwithstanding the other provisions of Article IV or this Article X, the Manager is authorized to make any adjustment in the allocation of Profits or Losses provided for in such Articles if the Manager considers in good faith that the adjustment is necessary and equitable to correct errors in allocations caused by errors in unaudited financial information or to correct inequities that may arise under this Agreement, including those that may result from there being multiple Accounting Periods during a single Fiscal Year or during the term of this Agreement rather than a single Accounting Period.

(e) Solely for purposes of determining each Member's share of "excess nonrecourse liabilities" of the Company, as such term is defined in Regulations Section 1.752-3(a)(3), each Member's interest in profits for any Accounting Period shall be, for each Member, such Member's Common Percentage Interest.

(f) To the extent permitted by Regulations Section 1.704-2(h)(3), the Company shall endeavor to treat distributions as having been made from the proceeds of a Nonrecourse Liability or a Member Nonrecourse Debt only to the extent that such distributions would cause or increase an Adjusted Capital Account Deficit for any Member.

ARTICLE XI

BOOKS AND RECORDS, ACCOUNTING, TAX ELECTIONS AND TAX MATTERS

11.01. Maintenance of Records; Information Rights.

The Company, shall maintain true and correct books and records, in which shall be entered all transactions of the Company, and shall maintain all other records necessary, convenient, or incidental to recording the Company's business and affairs, which shall be sufficient to record the allocation of Profits and Losses and distributions as provided for herein. All decisions as to accounting principles, accounting methods, and other accounting matters shall be made by the Manager. Except to the extent expressly set forth in this Agreement, in accordance with Section 18-305(g) of the Act and to the extent permitted by the Act, no Member shall be entitled to inspect to the books and records of the Company or shall be entitled to any other information with respect to the Company. For so long as (i) Parakeet MHC Founders is a Member, (ii) Parakeet MHC is providing services to the Company under the Asset Management Agreement and (iii) each of Austin Berk and Jonathan Wyss remain officers of Parakeet MHC and are entitled to designate members of the board of managers of Parakeet MHC, each of Austin Berk and Jonathan Wyss shall be entitled to inspect the books and records of the Company, upon reasonable notice to the Company and at a time and place reasonably agreed upon with the Company.

11.02. Schedule K-1 Delivery.

The Company shall furnish to each Member for so long as such Member is a Member, copies of the Schedule K-1 of the federal return and any similar schedule to the state return for each tax year of the Company, reasonably promptly after such copies for such tax year are available.

11.03. Tax Elections; Determinations Not Provided for in Agreement.

Subject to Section 6.03, the Manager shall be empowered to make or revoke any elections now or hereafter required or permitted to be made by the Code or any state or local tax law, and to decide in a fair and equitable manner any accounting procedures and other matters arising with respect to the Company or under this Agreement that are not expressly provided for in this Agreement. Notwithstanding the foregoing, absent the unanimous consent of all Members (excluding, for such purpose, MIP LLC) to the contrary, the Company and all Members shall take any steps that may be necessary to elect partnership status for purposes

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

of the Code and any applicable state or local tax law. No provision of this Agreement shall be construed to sanction or approve any action inconsistent with the preceding sentence.

11.04. Partnership Audit Rules.

(a) Investor, or such other person designated by the Manager in writing from time to time, will be the "partnership representative" of the Company within the meaning of Section 6223 of the Code (the "Partnership Representative"). With respect to any period in which any non-individual is the Partnership Representative, the Manager shall cause the Company to appoint an individual eligible to be a "designated individual" under the Partnership Audit Rules (the "Designated Individual") through whom the Partnership Representative will act for all purposes of the Partnership Audit Rules. The Manager is hereby authorized to take any actions necessary under the Partnership Audit Rules or other guidance to designate the Partnership Representative and appoint the Designated Individual with respect to each taxable year of the Company (and the Partnership Representative and the Designated Individual are authorized to take any actions specified under the Partnership Audit Rules or any applicable state statute or local law), and the Company shall comply with any requirements necessary to effect such designations and appointments. In exercising its authority as Partnership Representative under the Partnership Audit rules, the Partnership Representative shall at all times be subject to the direction of the Manager, provided, further that the Manager may elect to terminate the Partnership Representative and appoint another Partnership Representative to the extent permitted under the Treasury Regulations that implement the Partnership Audit Rules.

(b) The Partnership Representative and the Designated Individual, if any, (collectively, the "Tax Representative") shall use their commercially reasonable efforts to apply the rules and elections under the Partnership Audit Rules in a manner that minimizes the likelihood that any Member would bear any material tax, interest or penalties as a result of any audit or proceeding that is attributable to another Member (other than a predecessor in interest). The Manager and Tax Representative are hereby authorized to take any action required to cause the financial burden of any "imputed underpayment" (as determined under Section 6225 of the Code) and associated interest, adjustments to tax and penalties arising from a partnership-level adjustment that are imposed on the Company (an "Imputed Underpayment") to be borne by the Members to whom such Imputed Underpayment relates as determined by the Tax Representative after consulting with the Company's accountants or other advisers, taking into account any differences in the amount of taxes attributable to each Member because of such Member's status, nationality or other characteristics. By executing this Agreement or a counterpart hereof, each Member (i) expressly authorizes the Tax Representative and the Company to take any and all action that is reasonably necessary under applicable federal income tax law (as such law may be revised from time to time) to cause the Company to make the election set forth in Section 6226(a) of the Code if the Tax Representative decides to make such election, and (ii) expressly agrees to take any action, and furnish the Tax Representative with any information necessary, to give effect to such election. Each Member hereby severally indemnifies and holds the Company, the Manager and the Tax Representative harmless for such Member's respective portion of the financial burden of an Imputed Underpayment as provided in the foregoing sentence and in furtherance thereof, each Member agrees (A) to pay such amount to the Company within fifteen (15) days following the Company's request for payment (and any failure to pay such amount shall result in interest on such amount calculated at the prime rate plus two percent (2%)) and (B) that any amounts otherwise distributable to such Member may be applied in satisfaction of such obligations. Except with the express written consent of the Manager, each Member shall be jointly and severally liable with their predecessors in interest, if any, for amounts owed hereunder in respect of any predecessor in interest to such Member. No Member shall file a notice with the Internal Revenue Service under Section 6222(c)(1)(B) of the Code in connection with such Member's intention to treat an item on such Member's Federal income tax return in a manner that is inconsistent with the treatment of such item on the Company's Federal income tax return unless such Member has, not less than thirty (30) days prior to the filing of such notice, provided the Tax Representative

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with a copy of the notice and thereafter in a timely manner provides such other information related thereto as the Tax Representative shall reasonably request.

(c) The Tax Representative shall employ experienced tax counsel to represent the Company in connection with any audit or investigation of the Company by a taxing authority and in connection with all subsequent administrative and judicial proceedings arising out of such audit. The fees and expenses of such, and all expenses incurred by the Tax Representative in serving as such, shall be Company expenses and shall be paid by the Company. Notwithstanding the foregoing, it shall be the responsibility of the Manager and of each Member, at their expense, to employ tax counsel to represent their respective separate interests.

(d) If the Tax Representative is required by Applicable Law or regulation to incur fees and expenses in connection with tax matters not affecting each of the Members, then the Tax Representative may, in its reasonable discretion, seek reimbursement from or charge such fees and expenses to the Capital Accounts of those Members on whose behalf such fees and expenses were incurred

(e) The provisions of this Section 11.04 shall survive the termination of the Company or the termination of any Membership Interests and shall remain binding on the Members for as long a period of time as is necessary to resolve with the Internal Revenue Service any and all matters regarding the federal income taxation of the Company or the Members (relating to the operations of the Company).

ARTICLE XII

INITIAL PUBLIC OFFERING

12.01. Conversion Upon Initial Public Offering.

(a) Notwithstanding anything contained herein to the contrary, the Manager may determine in good faith at any time, without the requirement for consent by any Member, that the Company or any of its Subsidiaries should engage in an Initial Public Offering. In the event that the Manager makes any such determination, the Manager and the other Members will cooperate with each other in good faith so that the Initial Public Offering, and any IPO Conversion in connection therewith, is effected in a tax-efficient manner. Subject to the immediately preceding sentence but otherwise notwithstanding anything herein to the contrary, in connection with any proposed Initial Public Offering approved by the Manager, the Manager may (i) cause this Agreement to be amended to provide for a conversion in accordance with Applicable Law to a corporation or such other business entity or capital structure as the Manager may determine, (ii) cause the distribution of shares, units or other equity interests of any Subsidiary of the Company to the Members in accordance with Section 5.02, (iii) form a Subsidiary holding company and distribute its shares to the Members, (iv) move the Company to another jurisdiction to facilitate any of the foregoing and/or (v) take such other steps as it deems necessary or appropriate to create a suitable vehicle for an offering, in each such case, in accordance with the Act and Applicable Law (the resulting entity, the "IPO Corporation"), and in each case, for the express purpose of an initial offering of the securities of such IPO Corporation for sale to the public in a registered public offering pursuant to the Securities Act (an "IPO Conversion").

(b) In connection with any proposed IPO Conversion, at the option of the Manager, all or any portion of the Membership Interests (the "Pre-IPO Subject Securities") may be converted into or exchanged or redeemed for shares (or other equity securities and/or options at Fair Market Value) and other rights with substantially equivalent economic, governance, priority and other rights and privileges as in effect immediately prior to such IPO Conversion (disregarding the tax treatment of such conversion, exchange or redemption) (the "Post-IPO Subject Securities"). In connection with any such conversion, exchange or redemption, the number of Post-IPO Subject Securities to be issued to the Members in respect to the Pre-

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IPO Subject Securities shall be determined on a consistent basis by the Manager based upon (i) the Fair Market Value of the Company on the date of the IPO Conversion as determined in good faith by the Manager and (ii) the resulting relative values of the Pre-IPO Subject Securities assuming the Company is dissolved and the net proceeds are distributed to the owners of Pre-IPO Subject Securities in accordance with Section 5.02. If any such conversion, exchange or redemption is effected, each Member agrees to execute and deliver all agreements, instruments and documents as may be reasonably requested or required in order to consummate such conversion, exchange or redemption. For the avoidance of doubt, it is understood that all Members owning the same Pre-IPO Subject Securities shall receive the same type and amount of Post-IPO Subject Securities on a *pro rata* basis based on the relative amounts of such Pre-IPO Subject Securities owned by such Members immediately prior to the IPO Conversion.

(c) Subject to Section 12.01(a) and Section 12.01(b), if the Manager determines to effect an IPO Conversion, each Member shall cooperate in good faith with the Manager, including taking all actions reasonably requested or required by the Manager, in connection with consummating the IPO Conversion. Without limiting the generality of the foregoing, in connection with the consummation of the Initial Public Offering, the IPO Corporation and each Member shall enter into a stockholders agreement having substantially identical terms and conditions (taking into the account the corporate form of the IPO Corporation) as set forth in this Section 12.01, Sections 6.05, 6.06 and 6.07, Article VII and Article XIII.

12.02. Market Stand Off.

Each Member hereby agrees that, during such period (which period shall in no event exceed one hundred eighty (180) days or such longer period required to comply with applicable Financial Industry Regulatory Authority regulatory requirements, subject to any customary "booster shot" extensions) following the effective date of a registration statement filed with the SEC in connection with the Initial Public Offering of the Company, as the Manager (or its designee) agrees to with the underwriter or underwriters of such offering (such period, the "Lock-Up Period"), it shall not, to the extent requested by the Company and/or any underwriter, directly or indirectly, sell, pledge, hypothecate, make any short sale of, loan, grant any option or right to purchase of, enter into any hedging agreement or derivative transaction (cash settled or otherwise), establish any "put equivalent position" within the meaning of Rule 16(a)-1(h) of the Exchange Act or otherwise dispose of or Transfer (other than to donees who agree to be similarly bound) any Pre-IPO Subject Securities or Post-IPO Subject Securities owned by it at any time during such period, except any Post-IPO Subject Securities included in such registration. Each Member agrees that it shall deliver to the underwriter or underwriters of the Initial Public Offering to such Member a customary agreement reflecting its agreement set forth in this Section 12.02. The foregoing provisions of this Section 12.02 shall only be applicable to the Members if all officers, the Manager and holders of greater than one percent (1%) of the Company's equity enter into similar agreements; provided, further that if any of the obligations described in this Section 12.02 are waived or terminated with respect to any securities of any other Member, officer of the Company, Manager or holder of greater than one percent (1%) of the Company's equity (in any such case, the "Released Securities"), the foregoing provisions shall be waived or terminated, to the same extent and with respect to the same percentage of securities of each Member as the percentage that the Released Securities represent with respect to the securities held by the applicable Member, officer, Manager or holder of greater than one percent (1%) of the Company's equity.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

ARTICLE XIII

GENERAL PROVISIONS

13.01. Notices.

Except as otherwise explicitly set forth herein with respect to notice under certain specified circumstances, all notices, consents, waivers, requests, or other instruments or communications given pursuant to this Agreement shall be in writing, shall be signed by the party giving the same, and shall be: (i) delivered by hand; (ii) sent by registered or certified United States mail, return receipt requested, postage prepaid; (iii) sent by a recognized overnight delivery service; or (iv) sent by electronic mail with confirmation by electronic mail acknowledgement by the receiving party and followed by delivery of such notice by a recognized overnight delivery service. Such notices, instruments, or communications shall be addressed, in the case of the Company, to the Company at its principal place of business, and in the case of any Member, to the address set forth in the Company's books and records; except that any Member may, by notice to the Company and each other Member, specify any other address for the receipt of such notices, instruments, or communications. Except as expressly provided in this Agreement, any notice, instrument, or other communication shall be deemed properly given when sent in the manner prescribed in this Section 13.01. In computing the period of time for the giving of any notice, the day on which the notice is given shall be excluded and the day on which the matter noticed is to occur shall be included. If notice is given by personal delivery, then it shall be deemed given on the date personally delivered to such person. If notice is given by mail, it shall be deemed given when deposited in the mail addressed to the person to whom it is directed at the last address of the person as it appears on the records of the Company, with prepaid postage thereon. If notice is given by nationally recognized overnight courier delivery service, then it shall be deemed given on the first (1st) Business Day after the date delivered to such nationally recognized overnight courier delivery service. If notice is given by electronic mail (with confirmation by electronic mail acknowledgement by the receiving party and followed by a recognized overnight delivery service in accordance with this Section 13.01), then it shall be deemed given on the day delivered by electronic mail. If notice is given in any other manner authorized herein or by Applicable Law, it shall be deemed given when actually delivered, unless otherwise specified herein or by Applicable Law.

13.02. Interpretation.

(a) Article, Section, and Subsection headings are not to be considered part of this Agreement, are included solely for convenience of reference and are not intended to be full or accurate descriptions of the contents thereof.

(b) Use of the terms "herein," "hereunder," "hereof," and like terms shall be deemed to refer to this entire Agreement and not merely to the particular provision in which the term is contained, unless the context clearly indicates otherwise.

(c) Use of the word "including" or a like term shall be construed to mean "including, but not limited to."

(d) Exhibits and schedules to this Agreement are an integral part of this Agreement.

(e) Words importing a particular gender shall include every other gender, and words importing the singular shall include the plural and vice-versa, unless the context clearly indicates otherwise.

(f) Any reference to a provision of the Code, Regulations, or the Act shall be construed to be a reference to any successor provision thereof.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

13.03. Governing Law; Jurisdiction; Venue; Waiver of Jury Trial.

(a) This Agreement and all matters arising herefrom or with respect hereto, including tort claims (the "Covered Matters") shall be governed by, and construed in accordance with, the internal laws of the State of Delaware, without reference to the choice of law principles thereof. Each of the parties hereto irrevocably submits to the exclusive jurisdiction of the federal and state courts located in the State of Delaware for the purpose of any suit, action, proceeding or judgment relating to or arising out of the Covered Matters. Service of process in connection with any such suit, action or proceeding may be served on each party hereto anywhere in the world by the same methods as are specified for the giving of notices under this Agreement. Each of the parties hereto irrevocably consents to the jurisdiction of any such court in any such suit, action or proceeding and to the laying of venue in such court. Each party hereto irrevocably waives any objection to the laying of venue of any such suit, action, or proceeding brought in such courts and irrevocably waives any claim that any such suit, action, or proceeding brought in any such court has been brought in an inconvenient forum.

(b) TO THE EXTENT NOT PROHIBITED BY APPLICABLE LAW THAT CANNOT BE WAIVED, EACH PARTY HEREBY WAIVES, AND COVENANTS THAT IT WILL NOT ASSERT (WHETHER AS PLAINTIFF, DEFENDANT OR OTHERWISE), ANY RIGHT TO TRIAL BY JURY IN ANY FORUM IN RESPECT OF ANY ISSUE, CLAIM, DEMAND, ACTION OR CAUSE OF ACTION ARISING IN WHOLE OR IN PART UNDER, RELATED TO, BASED ON OR IN CONNECTION WITH THIS AGREEMENT OR THE SUBJECT MATTER HEREOF, WHETHER NOW EXISTING OR HEREAFTER ARISING AND WHETHER SOUNDING IN TORT OR CONTRACT OR OTHERWISE. ANY PARTY HERETO MAY FILE AN ORIGINAL COUNTERPART OR A COPY OF THIS SECTION 13.03(b) WITH ANY COURT AS WRITTEN EVIDENCE OF THE CONSENT OF EACH SUCH PARTY TO THE WAIVER OF ITS RIGHT TO TRIAL BY JURY.

13.04. Binding Agreement.

This Agreement shall be binding upon and inure to the benefit of the Members and their respective Permitted Transferees, heirs, executors, administrators, personal representatives, successors and permitted assigns.

13.05. Severability.

Each item and provision of this Agreement is intended to be severable. Except to the extent otherwise expressly provided in this Agreement, if any term or provision of this Agreement is determined by a court of competent jurisdiction to be unenforceable for any reason whatsoever, that term or provision shall be modified only to the extent necessary to be enforced, such term or provision shall be enforced to the maximum extent permitted by Applicable Law, and the validity of the remainder of this Agreement shall not be adversely affected thereby.

13.06. Entire Agreement.

This Agreement constitutes the entire agreement among the Members and their respective Affiliates with respect to the subject matters hereof and thereof and supersede any and all other understandings and agreements, either oral or in writing, between the Members with respect to the subject matters hereof.

13.07. Further Action. Each Member and each other party hereto shall execute and deliver all papers, documents, and instruments and perform all acts that are necessary or appropriate to implement the

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

terms of this Agreement and the intent of the Members and each other party hereto, as and when requested by the Manager.

13.08. Amendment or Modification.

This Agreement (including the exhibits hereto) may be amended or modified from time to time only by an act of the Manager. Notwithstanding the foregoing, no amendment or modification to this Agreement shall create any personal liability or personal obligation of any Member for the debts, obligations or liabilities of the Company not otherwise required under the Act without such Member's written consent. Any and all amendments, modifications, supplements or waivers to this Agreement made pursuant to this Section 13.08 shall be binding upon all Members (whether or not such Member consented to such amendment, modification, supplement or waiver).

13.09. Representations.

Each of the parties hereto hereby represents and warrants to each of the other parties that, on the Effective Date (and in respect of Persons who become a party to this Agreement after the Effective Date, such party hereby represents and warrants to each of the other parties on the date of its execution of this Agreement) as follows:

(a) Such party (if not a natural person) is duly organized or incorporated, validly existing and in good standing under the laws of the jurisdiction of its organization or incorporation and has all requisite power and authority to conduct its business as it is now being conducted and is proposed to be conducted.

(b) Such party (if not a natural person) has the requisite limited partnership, corporate, limited liability company or other organizational power, authority and legal capacity, as the case may be, to execute, deliver and perform this Agreement and to consummate the transactions contemplated herein. Such party (if a natural person) has the legal capacity to enter into this Agreement and perform such party's obligations hereunder. The execution, delivery and performance of this Agreement and the consummation of the transactions contemplated herein have been duly authorized by all necessary action, corporate or otherwise, of such party. This Agreement has been duly executed and delivered by such party and constitutes his, her or its legal, valid and binding obligation, enforceable against him, her or it in accordance with its terms, subject to applicable bankruptcy, insolvency and similar laws affecting creditors' rights generally and the availability of equitable remedies.

(c) The execution and delivery by such party of this Agreement, the performance by such party of his, her or its obligations hereunder and the consummation of the transactions contemplated herein by such party does not and will not violate (i) in the case of parties who are not individuals, any provision of its by-laws, charter, articles of association, partnership agreement, operating agreement, trust instrument or other similar document, (ii) any provision of any material agreement to which he, she or it is a party or by which he, she or it is bound or (iii) any law, rule, regulation, judgment, order or decree to which he, she or it is subject.

(d) Such party is not in breach of any agreement requiring it to preserve the confidentiality of any information, client/investor lists, trade secrets, or other confidential information, or any agreement not to compete, solicit clients/investors or employees of, or interfere with, any prior employer, and that neither the execution of this Agreement nor the performance by such party of its obligations hereunder will conflict with, result in a breach of, or constitute a default under, any agreement or policy to which such party is a party or may be subject.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(e) No consent, waiver, approval, authorization, exemption, registration, license or declaration is required to be made or obtained by such party in connection with the execution, delivery or enforceability of this Agreement or the consummation of any of the transactions contemplated herein.

(f) Such party is not currently in violation of any law, rule, regulation, judgment, order or decree, which violation could reasonably be expected at any time to have a material adverse effect upon such party's ability to enter into this Agreement or to perform his, her or its obligations hereunder.

(g) There is no pending legal action, suit or proceeding that would materially and adversely affect the ability of such party to enter into this Agreement or to perform his, her or its obligations hereunder.

(h) Such party is an "accredited investor," as defined in Rule 501(a) of Regulation D promulgated under the Securities Act, has acquired his, her or its interest in the Company for such Member's own account, for investment only, and not with a view to the sale or distribution of that interest or any portion of that interest. Such party recognizes that an investment in the Company is speculative and involves certain risks and that the Member could lose his, her or its entire investment in the Company.

(i) Such party understands that the Securities have not been registered under the Securities Act and may not be offered, resold, pledged or otherwise transferred except: (1) pursuant to an exemption from registration under the Securities Act (and, if requested by the Company, based upon an opinion of counsel acceptable to the Company) or pursuant to an effective registration statement under the Securities Act and (2) in accordance with all applicable securities laws of the states of the United States and other jurisdictions.

(j) Such party has such knowledge, sophistication and experience in business and financial matters so as to be capable of evaluating the merits and risks of the prospective investment in the Securities, having been represented by counsel, and has so evaluated the merits and risks of such investment and is able to bear the economic risk of such investment and, at the present time, is able to afford a complete loss of such investment.

(k) Such party or its representatives have been afforded: (i) the opportunity to ask such questions as it has deemed necessary of, and to receive answers from, representatives of the Company concerning the terms and conditions of the offering of the Securities and the merits and risks of investing in the Securities; and (ii) access to information about the Company and the Company's financial condition, results of operations, business, properties, management and prospects sufficient to enable it to evaluate its investment in the Securities.

(l) Such party understands and acknowledges that: (i) the Securities are offered and sold without registration under the Securities Act in a private placement that is exempt from the registration provisions of the Securities Act and (ii) the availability of such exemption depends in part on, and that the Company and its counsel will rely upon, the accuracy and truthfulness of the foregoing representations and such party hereby consents to such reliance.

13.10. Counterparts.

This Agreement may be executed in original or by facsimile or other electronic communication (including PDF) in several counterparts and, as so executed, shall constitute one agreement, binding on all of the parties hereto, notwithstanding that all of the parties are not signatory to the original or to the same counterpart.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

13.11. Representation; Conflict Waiver.

(a) This Agreement was prepared and/or negotiated by Lowenstein Sandler LLP in its capacity as legal counsel to the Company and Investor Member. In connection with its preparation and negotiation of this Agreement, each of the Members acknowledges that Lowenstein Sandler LLP has advised each Member that (1) the individual interests of such Member may be different than the interests of the Company and Investor Member; and (2) it would be in the best interest of each Member to retain its, his or her own counsel for the purpose of advising such Member how this Agreement affects each of their personal interests. Each of the Members hereby (i) agrees to waive any conflict of interest that may arise out of Lowenstein Sandler LLP's simultaneous representation of the Company and Investor Member; and (ii) acknowledges that such Member has been advised to consult with its own counsel regarding such waiver and has done so to the extent it considers necessary. Each of the Members hereby further acknowledges that such Member has, to the extent such Member considers necessary, retained and consulted with such Member's own counsel for the purpose of advising such Member with respect to this Agreement and the transactions contemplated hereby.

(b) Each of the Members agrees that Lowenstein Sandler LLP may serve or continue to serve as counsel to each of the Company and Investor Member and any of their respective Affiliates, in connection with any matters related or unrelated to this Agreement and the transactions contemplated hereby (collectively, the "Transactions"), including any litigation, claim or obligation arising out of or relating to this Agreement or the Transactions, notwithstanding any representation by Lowenstein Sandler LLP prior to the Effective Date of the Company or Investor Member. The Members and the Company hereby (1) waive any claim they have or may have that Lowenstein Sandler LLP has a conflict of interest or is otherwise prohibited from engaging in such representation, (2) agree that, in the event that a dispute arises after the Effective Date between the Company, on the one hand, and the Investor Members or any of their Affiliates, on the other hand, Lowenstein Sandler LLP may represent the Investor Members and any of their Affiliates, in such dispute even though the interests of such Person(s) may be directly adverse to the Company and even though Lowenstein Sandler LLP may have represented the Company in a matter substantially related to such dispute, and (3) agree that in the event that a dispute arises after the Effective Date among the Company or the Investor Members and any of their Affiliates, on the one hand, and the Members or any of their Affiliates, on the other hand, Lowenstein Sandler LLP may represent the Company or the Investor Members and any of its Affiliates, in such dispute.

13.12. Broker's Indemnity; Company Accountant; Certain Expenses.

(a) The Common Members represent and warrant, each to the other, that no investment bankers, brokers, finders, advisors or consultants were involved in the negotiation and/or consummation of this transaction. In the event that any investment banker, broker, finder or similar person claims any commission or similar compensation in connection with this Agreement or the formation of the Company, the Member through whom the investment banker, broker, finder or similar person makes its claim shall indemnify, defend and hold harmless the other Member, its Representatives, agents and the Company from and against any and all liabilities, losses, claims, costs, damages and expenses (including, but not limited to, any judgment, award or settlement and reasonable attorneys' costs, expenses and fees, costs and expenses of investigation, and other costs or expenses incurred in connection with the defense of any actual or threatened action, proceeding or claim) which any of them may suffer or incur by reason of any such claim. The provisions of this Section 13.12(a) shall survive the termination of this Agreement, the liquidation of the Company, the dissolution of the Company, the withdrawal, resignation or retirement of a Member from the Company, the transfer of a Member's interest in the Company and the liquidation of a Member's interest in the Company.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(b) The Company shall retain as its accountant for the Company ("Company Accountant") any nationally-recognized accounting firm proposed and approved by the Manager. The fees and expenses of the Company Accountant shall be a Company expense.

(c) The Company shall bear the expenses of the Investor Members and the Parakeet Members in connection with the negotiation, documentation, and entry into this Agreement and the other agreements contemplated hereby; provided, that, to the extent any material acquisition of assets by the Company or any of its Subsidiaries occurs after the Effective Date, the Investor Members and Parakeet Member's reasonable and documented third-party fees and expenses incurred in connection with the negotiation and consummation of such acquisition will be reimbursed by the Company from the collective Capital Contributions of the Members.

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Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed as of the Effective Date.

COMMON MEMBERS:

JADIAN REAL ESTATE FUND II AGGREGATOR, LP
By: Jadian Real Estate Fund II GP, LLC, its general partner

By: DocuSigned by: Bryan Laplant 41A008C2EA77420...
Name: Bryan LaPlant
Title: Authorized Signatory

MIP LLC**:**

PARAKEET HOLDCO II MIP, LLC
By: Parakeet HoldCo II, LLC, its manager

By: DocuSigned by: Bryan Laplant 41A008C2EA77420...
Name: Bryan LaPlant
Title: Authorized Signatory

Until such time as Parakeet MHC Founders is admitted as a Member, solely with respect to Section 3.04(b) and Article XIII, and from and after such time as Parakeet MHC Founders is admitted as a Member, with respect to this Agreement, in its entirety:

PARAKEET MHC FOUNDERS:

PARAKEET MHC FOUNDERS, LLC:

By: Signed by: Austin Berk 89F264D12A734E1...
Name: Austin Berk
Title: Authorized Signatory

Solely with respect to Section 6.07, Section 11.01 and Article XIII:

Signed by: Austin Berk 89F264D12A734E1...
Austin Berk

DocuSigned by: 5F2C638B214141D...
Jonathan Wyss

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

EXHIBIT A

MEMBERS; UNITS

As of October 11, 2024

Name and Address	Common Units	Class P Units
Jadian Real Estate Fund II Aggregator, LP c/o Jadian Capital 4 Star Point, Suite 204 Stamford, CT 06902	4,500,000	0
Parakeet HoldCo II MIP, LLC c/o Jadian Capital 4 Star Point, Suite 204 Stamford, CT 06902	0	1
Total:	**4,500,000**	**1**

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

EXHIBIT B

DEFINITIONS

(a) Defined Terms. For purposes of this Agreement, the following terms shall have the following meanings:

"Accounting Period" means the following fiscal periods: the initial Accounting Period shall commence on the day on which the Certificate of Formation was filed with the State of Formation. Each subsequent Accounting Period shall commence immediately after the close of the next preceding Accounting Period. Each Accounting Period shall close at the close of business on the first to occur of (a) the last day of a Fiscal Year of the Company; (b) the day immediately preceding the effective date of the acceptance of a Capital Contribution from a new or existing Member, other than a Capital Contribution that is *pro rata* among all existing Members; (c) the day immediately preceding the grant of an interest in the Company (other than a *de minimis* interest) as consideration for the provision of services to or for the benefit of the Company by an existing Member acting in the capacity of a Member or by a new Member acting in the capacity of a Member or in anticipation of being a Member; (d) the effective date of the partial or complete withdrawal of a Member; or (e) the date of the Company's liquidation.

"Adjusted Capital Account Deficit" means, with respect to any Member, the deficit balance, if any, in such Member's Capital Account as of the end of the relevant Accounting Period, giving effect to the following adjustments:

(a) Credit to such Capital Account any amounts that such Member is obligated to restore or is deemed to be obligated to restore pursuant to the penultimate sentences of Regulations Section 1.704-2(g)(1) and Section 1.704-2(i)(5).

(b) Debit to such Capital Account the items described in Regulations Section 1.704-1(b)(2)(ii)(d)(4), section 1.704-1(b)(2)(ii)(d)(5), and Section 1.704-1(b)(2)(ii)(d)(6).

The foregoing definition of Adjusted Capital Account Deficit is intended to comply with the provisions of Regulations Section 1.704-1(b)(2)(ii)(d) and shall be interpreted consistently therewith.

"Affiliate" means, with respect to a specified entity, any individual or entity that directly, or indirectly through one or more intermediaries, Controls, is Controlled by or is under common Control with the specified entity, including each executive officer (within the meaning of Rule 3b-7 of the Exchange Act) of such entity.

"Agreement" means this Limited Liability Company Agreement, as it may be amended, restated, amended and restated, supplemented or otherwise modified from time to time.

"Applicable Law" means, with respect to any Person, all provisions of laws, statutes, ordinances, rules, regulations, permits, certificates, judgments, decrees or orders of any Governmental Authority applicable to such Person.

"Approved Annual Budget" means, with respect to each Fiscal Year, the annual budget for the Company and its Subsidiaries for such Fiscal Year approved by the Manager in accordance with Section 6.03(g).

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

"Asset Management Agreement" means the Asset Management Agreement, dated as of the Effective Date, between the Company and Parakeet MHC, as amended, amended and restated, supplemented or otherwise modified from time to time in accordance with the terms thereof.

"Award Agreement" means an award agreement or similar instrument pursuant to which Management LLC Units are granted under the Management LLC Agreement, as amended, restated, supplemented or otherwise modified from time to time in accordance with the terms thereof.

"Berk Offer Letter" means that certain offer letter, dated as of August 30, 2021, in favor of Austin Berk from Parakeet MHC.

"Business Day" means a day, other than a Saturday or Sunday, on which commercial banks in New York City are open for the general transaction of business.

"Capital Account" means, with respect to any Member, the Member's Capital Contribution, increased or decreased as provided in this Agreement.

"Capital Contribution" means, with respect to any Member, the amount of cash and the initial Gross Asset Value of any property other than cash contributed (for no consideration other than Units issued in exchange) to the Company by that Member, provided, that, no services may be contributed with respect to a Capital Contribution.

"Class P Distribution Threshold" means, with respect to each Class P Unit, $0.00, as such amount may subsequently be adjusted in accordance with Section 3.02(d) to the extent necessary so that such Class P Unit qualifies as a Profits Interest.

"Class P Unit" means a Unit representing a Class P limited liability company interest in the Company with the rights and obligations specified in this Agreement.

"Code" means the Internal Revenue Code of 1986, as amended.

"Common Member" means a Member that owns any, in its, his or her capacity as such and solely with respect to, Common Units.

"Common Unit" means a Unit representing a common limited liability company interest in the Company with the rights and obligations specified in this Agreement.

"Common Percentage Interest" means, with respect to each Common Member at the time of determination, the quotient, expressed as a percentage, of (x) the total number of Common Units held by such Member divided by (y) the total number of Common Units then outstanding.

"Common Unreturned Contribution Amount" means with respect to each Common Unit, calculated as of a given date, the amount (not less than zero) equal to (i) the Capital Contributions theretofore made with respect to such Common Unit, minus (ii) all amounts distributed in respect of such Common Unit pursuant to Section 5.02(a)(i) (including, without duplication, any amounts distributed or treated as distributed under Section 5.04 that are applied as an advance against an amount otherwise distributable under Section 5.02(a)(i)).

"Company Minimum Gain" has the meaning given to "Partnership Minimum Gain" in Regulations Sections 1.704-2(b)(2) and 1.704-2(d).

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

"Control" shall mean the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ownership of voting securities, by contract or otherwise, and the terms "Controlling" and "Controlled" shall have meanings correlative thereto.

"Encumbrance" means any charge, claim, community or other marital property interest, right of first option, right of first refusal, mortgage, pledge, lien, security interest, collateral assignment, Transfer restriction or other encumbrance.

"Exchange Act" means the Securities Exchange Act of 1934, as amended, and the rules and regulations of the SEC promulgated thereunder.

"Exclusivity Period" means (i) for any Member other than the Parakeet Member and its members, the period commencing on the Effective Date and ending on the occurrence of a Liquidation Event; and (ii) for each of Austin Berk and Jonathan Wyss, the term of their employment or services with any member of the Parakeet Group and for a period of six (6) months thereafter. For purposes of this Agreement, the Exclusivity Period with respect to any Member shall be extended for a period equal to the period during which such Member was in violation of any provision of Section 6.05 through Section 6.07.

"Exempt Entities" means any Investor Member and any direct or indirect member of any Investor Member, including without limitation Jadian Capital, LLC and any fund, client or account advised or managed by Jadian Capital, LLC or any of its Affiliates, and any of the officers, directors, trustees, employees, partners, managers, members, stockholders, beneficiaries and agents of any of the foregoing.

"Existing Activities" means those business activities of Austin Berk and Jonathan Wyss set forth on Schedule 1 hereto.

"Fair Market Value" means, as of any date of determination, the fair market value as determined by the Manager in good faith.

"Fiscal Year" means the calendar year; but, upon the organization of the Company, "Fiscal Year" means the period from the first day of the term of the Company to the next following December 31 and, upon dissolution of the Company, shall mean the period from the end of the last preceding Fiscal Year to the date of such dissolution.

"GAAP" means generally accepted accounting principles in the United States as in effect from time to time.

"Governmental Authority" means any international, national, federal, state, provincial or local governmental, regulatory or administrative authority, agency, commission, court, tribunal, arbitral body or self-regulated entity, whether domestic or foreign.

"Gross Asset Value" means, with respect to any asset, the asset's adjusted basis for federal income tax purposes, adjusted as provided in this Agreement.

"Initial Public Offering" means, with respect to a Person, the first underwritten public offering and sale of equity securities of such Person pursuant to an effective registration statement filed with the SEC pursuant to the Securities Act; provided that an Initial Public Offering shall not include an offering made on Form S-4 or Form S-8 (or any successor form) in connection with a business acquisition or combination or an employee benefit plan, respectively.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

"Internal Rate of Return" means, as of the date of determination, the leveraged pre-tax internal rate of return (assuming quarterly compounding) calculated for the Common Members (other than the Parakeet Member) in respect of their Common Units using the Microsoft Excel XIRR Function, based on the aggregate Capital Contributions made by such Common Members (other than the Parakeet Member) to the Company and the distributions received and to be received by the Common Members (other than the Parakeet Member) in respect of their Common Units, through and including such date; provided, however, that if the Microsoft Excel XIRR Function is no longer operative, then its successor shall be used, and if there are multiple successors, the successor agreed upon by the Manager shall be used. An illustrative example of an Internal Rate of Return calculation is attached as Exhibit C, and this example is solely for illustrative purposes to aid in the interpretation of this definition. The operation of this definition will be based on the facts and circumstances that give rise to the particular calculation hereunder. For the avoidance of doubt, the Internal Rate of Return of the Investor Member is not determined based on class of Common Units, but rather on an aggregate basis.

"Investor" means, the Investor Members, collectively, acting by and through JREF II Aggregator pursuant to the last paragraph of Section 6.03.

"Investor Member" means each of JREF II Aggregator and its successors and permitted assigns, and any other Person acquiring all or any portion of the Membership Interests initially held by JREF II Aggregator and designated as such, to the extent permitted hereunder.

"Liquidation Event" means the dissolution, liquidation and winding up of the Company.

"Manager" means the Person that becomes the "manager" of the Company (within the meaning of § 18-402 of the Act) pursuant to the terms of this Agreement, but does not include any Person that has ceased to be the manager of the Company. For the avoidance of doubt, the Manager may, but need not, be a Member.

"Material Agreements" means any agreement, contract or instrument to which the Company or any of its Subsidiaries is a party or by which the Company or any of its Subsidiaries or any of its assets or properties is bound: (i) pursuant to which the Company or any of its Subsidiaries receives or will receive revenue (as determined in accordance with GAAP), in excess of $300,000 in any 12 month period, (ii) governing, creating, evidencing or relating to material indebtedness of the Company or any of its Subsidiaries or (iii) the termination or suspension of which, or the failure of any party thereto to perform its obligations thereunder, could reasonably be expected to have a material adverse effect on the Company and/or its Subsidiaries.

"Member" means each Person executing this Agreement as a Member or hereafter admitted to the Company as a Member as provided in this Agreement, but does not include any Person who has ceased to be a Member of the Company. For purposes of interpreting this Agreement, references to the term "Member" in Article IV, Article V and Article X shall be deemed to refer also to a transferee of an interest in the Company who is not admitted as a Member under Section 7.04; provided, however, that no other references to the term "Member" shall be deemed to also refer to any such transferee.

"Member Nonrecourse Debt" has the meaning given to "partner nonrecourse debt" in Regulations Section 1.704-2(b)(4).

"Member Nonrecourse Debt Minimum Gain" means an amount, with respect to each Member Nonrecourse Debt, equal to the Company Minimum Gain that would result if such Member Nonrecourse Debt were treated as a Nonrecourse Liability, determined in accordance with Regulations Section 1.704-2(i)(3).

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

"Member Nonrecourse Deductions" has the meaning given to "partner nonrecourse deductions" in Regulations Sections 1.704-2(i)(1) and 1.704-2(i)(2). The amount of Member Nonrecourse Deductions with respect to a Member Nonrecourse Debt for any Accounting Period shall be determined in accordance with Regulations Section 1.704-2(i)(2).

"Membership Interests" means the entire interest of a Member in the Company, including rights to distributions (liquidating or otherwise), allocations, information, and the right to participate in the management of the business and affairs of the Company, including the right to vote on, consent to, or otherwise participate in any decision or action of or by the Members granted by this Agreement, which rights are denominated in Common Units and Class P Units and any other classes or series of Units or other Securities issued in accordance with having the rights and privileges set forth in this Agreement.

"MOPIC" means, as of the applicable measurement date and as determined by the Manager in good faith, the ratio of (i) Net Cash Proceeds (including, without duplication, any amounts distributed under Section 5.04) to (ii) the greatest aggregate amount of capital contributed and loans made by the applicable Common Member (other than the Parakeet Member) to the Company or any of its Subsidiaries from and after the Effective Date, without duplication.

"Net Cash Proceeds" means, as of any date, without duplication, any cash proceeds, dividends and/or distributions actually received by or then being paid to the applicable Common Member (other than the Parakeet Member) from and after the Effective Date at any time with respect to its Common Units, calculated cumulatively without duplication after giving effect to all other amounts and distributions previously or concurrently paid.

"Nonrecourse Deductions" has the meaning set forth in Regulations Section 1.704-2(b)(1). The amount of Nonrecourse Deductions for an Accounting Period shall be determined in accordance with Regulations Section 1.704-2(c).

"Nonrecourse Liability" has the meaning set forth in Regulations Sections 1.704-2(b)(3) and 1.752-1(a)(2).

"Offer Letters" means the Berk Offer Letter and the Wyss Offer Letter, collectively or individually as the context requires.

"Parakeet Member" means, from and after such time as Parakeet MHC Founders acquires Units and is admitted to the Company as a Member until such time as Parakeet MHC Founders ceases to be a Member, Parakeet MHC Founders.

"Parakeet MHC" means Parakeet MHC, LLC, a Delaware limited liability company.

"Partnership Audit Rules" means the provisions of Subchapter C of Chapter 63 of the Code, as revised by Section 1101 of the Bipartisan Budget Act of 2015, as such provisions may thereafter be amended and including Regulations or other guidance issued thereunder.

"Partnership Representative" has the meaning ascribed to that term in Section 6223 of the Code.

"Person" means an individual, corporation, association, partnership, joint venture, limited liability company, estate, trust, or any other legal entity.

"Profits and Losses" means, for each Accounting Period, an amount equal to the Company's taxable income or loss for such Accounting Period, determined in accordance with Code Section 703(a)

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

(for this purpose, all items of income, gain, loss, or deduction required to be stated separately pursuant to Code Section 703(a)(1) shall be included in taxable income or loss), with the following adjustments:

(a) Income that is exempt from federal income tax and not otherwise taken into account in computing Profits and Losses shall be added to such taxable income or loss.

(b) Any expenditures of the Company described in Code Section 705(a)(2)(B), or that are treated as Code Section 705(a)(2)(B) expenditures pursuant to Regulations Section 1.704-1(b)(2)(iv)(i) and not otherwise taken into account in computing Profits and Losses pursuant to this Section, shall be subtracted from such taxable income or loss.

(c) If the Gross Asset Value of any asset is adjusted pursuant to Sections 3.08(b) or 3.08(c), the amount of such adjustment shall be taken into account as gain or loss from the disposition of such asset for purposes of computing Profits and Losses.

(d) Gain or loss resulting from any disposition of assets with respect to which gain or loss is recognized for federal income tax purposes shall be computed by reference to the Gross Asset Value of the assets disposed of (as adjusted under this Agreement), notwithstanding that the adjusted tax basis of such property differs from its Gross Asset Value.

(e) In lieu of the depreciation, amortization, and other cost-recovery deductions taken into account in computing such taxable income or loss, there shall be taken into account Depreciation for such Accounting Period as defined hereinafter. For such purposes "Depreciation" means, for each Accounting Period, an amount equal to the depreciation, amortization, or other cost-recovery deduction allowable with respect to an asset for such Accounting Period, except that if the Gross Asset Value of an asset differs from its adjusted basis for federal income tax purposes at the beginning of such Accounting Period, Depreciation shall be any amount that bears the same ratio to such beginning Gross Asset Value as the federal income tax depreciation, amortization, or other cost-recovery deduction for such Accounting Period bears to such beginning adjusted tax basis; provided, however, that if the federal income tax depreciation, amortization, or other cost-recovery deduction for such Accounting Period is zero, Depreciation shall be determined with reference to such beginning Gross Asset Value using any reasonable method selected by the Company.

(f) To the extent an adjustment to the adjusted tax basis of any asset pursuant to Code Section 734(b) or Code Section 743(b) is required pursuant to Regulations Section 1.704-1(b)(2)(iv)(m)(4) to be taken into account in determining Capital Accounts as a result of a distribution other than in liquidation of a Member's interest in the Company, the amount of such adjustment shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases the basis of the asset) from the disposition of the asset and shall be taken into account for purposes of computing Profits and Losses.

(g) Notwithstanding any other provision of this definition, any items that are specially allocated pursuant to Section 10.01 shall not be taken into account in computing Profits and Losses. The amounts of the items of Company income, gain, loss, or deduction available to be so specially allocated shall be determined by applying rules analogous to those set forth in this definition.

(h) The Company's distributive share of any Profits and Losses (as defined herein) from any partnership (including any limited liability company or other entity treated as a partnership for tax purposes) in which it holds an interest, adjusted to avoid taking into account any items otherwise reflected in the Company's Profits and Losses, shall be included in the Company's Profits and Losses.

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

"Regulations" means the Treasury Regulations promulgated under the Code, as such Regulations may be amended.

"Sale of the Company" means the consummation of one of the following transactions: (i) a sale, issuance or other Transfer, in one or more transactions, of more than fifty percent (50%) of the outstanding Securities in the Company (based on the fair market value ascribed in such transaction); (ii) a sale or other disposition, in one or more transactions, of all or substantially all of the assets of the Company and its Subsidiaries, taken as a whole; or (iii) a merger or consolidation involving the Company following which the persons or entities with the power to appoint a majority of the Managers of the Company prior to such merger or consolidation no longer have the power to appoint a majority of the Managers in the surviving entity.

"SEC" means the U.S. Securities and Exchange Commission.

"Securities" means Units and any other equity securities or profits interests (or any securities convertible into or exercisable or exchangeable for Units or other equity securities or profits interests) of the Company or any of its Subsidiaries as may be issued in accordance with this Agreement.

"Securities Act" means the Securities Act of 1933, as amended, and the rules and regulations of the SEC promulgated thereunder.

"Separate Agreement" means, with respect to any Member or Management Participant, any employment agreement, consulting agreement, offer letter, award agreement or restrictive covenants agreement between such Member or Management Participant, on the one hand, and the Company or the MIP LLC or a Subsidiary or Affiliate thereof, on the other hand.

"Subsidiary" means, with respect to any specified Person (the "parent") at any date, (a) any other corporation, limited liability company, association or other business entity of which, (i) securities or other ownership interests representing more than 50% of the voting power thereof or (ii) the majority interest in the capital or profits of such corporation, limited liability company, association or other business entity, are owned, controlled or held by the parent and/or one or more Subsidiaries of the parent and (b) any other Person that is otherwise Controlled by the parent and/or one or more Subsidiaries of the parent.

"Transfer" means, as a noun, any voluntary or involuntary transfer, sale, pledge, hypothecation, gift, or other disposition and, as a verb, voluntarily or involuntarily to transfer, sell, pledge, hypothecate, give, or otherwise dispose of. For the avoidance of doubt, the term "Transfer" shall not include any redemption or repurchase of Securities by the Company or any Subsidiary thereof from any Member.

"Vested MIP LLC Units" has the meaning of the term "Vested Management LLC Units" in the Incentive Plan.

"Wyss Offer Letter" means that certain offer letter, dated as of March 1, 2022, in favor of Jonathan Wyss from Parakeet MHC.

(c) Terms Defined Elsewhere in this Agreement. For purposes of this Agreement, the following terms have meanings set forth in the sections of this Agreement indicated:

Term	Section
Act	Preamble
Assumed Tax Rate	Section 5.04
Certificate of Formation	Section 2.01

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

Company	Preamble
Company Accountant	Section 13.12(b)
Competitive Activities	Section 6.07(b)
Confidential Information	Section 6.07(a)
Corporate Opportunity	Section 6.08
Covered Matters	Section 13.03(a)
Covered Persons	Section 6.04(a)
Depreciation	Definition of "Profits and Losses"
Designated Individual	Section 11.04(a)
Distribution Threshold Condition	Section 5.02(b)
Drag-Along Sale	Section 7.08(a)
Drag-Along Sale Notice	Section 7.08(a)
Drag-Along Seller	Section 7.08(a)
Effective Date	Preamble
Family Members	Section 7.02
Formation Date	Recitals
Fund Indemnitor	Section 6.06(b)
Imputed Underpayment	Section 11.04(b)
Incentive Plan	Section 3.02(c)(i)
Indemnitee	Section 6.06(a)
Initial Capital Contribution	Recitals
IPO Conversion	Section 12.01(a)
IPO Corporation	Section 12.01(a)
JREF II Aggregator	Recitals
Lock-up Period	Section 12.02
Management Participants	Section 3.02(c)(i)
Member Equity Sale	Section 5.03
Member Representative	Section 5.03
MHC	Section 2.05
MIP LLC	Section 3.02(c)(i)
MIP LLC Agreement	Section 3.02(c)(i)
MIP LLC Units	Section 3.02(c)(i)
Parakeet MHC Founders	Section 3.04(b)
Partnership Representative	Section 11.04(a)
Permitted Transfer	Section 7.02
Permitted Transferee	Section 7.02
Post-IPO Subject Securities	Section 12.01(b)
Profits Interest	Section 3.02(d)
Pre-IPO Subject Securities	Section 12.01(b)
Regulatory Allocations	Section 10.01(h)
Released Securities	Section 12.02
Representatives	Section 6.07(a)
Restricted Period	Section 6.07(a)
State of Formation	Section 2.01
Subsidiary Interests	Section 2.05
Tax Distribution Amount	Section 5.04
Tax Representative	Section 11.04(b)
Third Party Purchaser	Section 7.08(a)
Transactions	Section 13.11(b)
Units	Section 3.02(a)(i)

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

EXHIBIT C

EXAMPLE IRR CALCULATION

EXAMPLE IRR CALCULATION					
Period		Equity Contributions	Net Proceeds	Total	
Month 0	01/01/12	($10,000,000)		($10,000,000)	<-*Cell E6*
Month 1	01/31/12		100,000	100,000	
Month 2	02/29/12		100,000	100,000	
Month 3	03/31/12		100,000	100,000	
Month 4	04/30/12		100,000	100,000	
Month 5	05/31/12		100,000	100,000	
Month 6	06/30/12		100,000	100,000	
Month 7	07/31/12		100,000	100,000	
Month 8	08/31/12		100,000	100,000	
Month 9	09/30/12		100,000	100,000	
Month 10	10/31/12		100,000	100,000	
Month 11	11/30/12		100,000	100,000	
Month 12	12/31/12		100,000	100,000	
Month 13	01/31/13		100,000	100,000	
Month 14	02/28/13		100,000	100,000	
Month 15	03/31/13		100,000	100,000	
Month 16	04/30/13		100,000	100,000	
Month 17	05/31/13		100,000	100,000	
Month 18	06/30/13		100,000	100,000	
Month 19	07/31/13		100,000	100,000	
Month 20	08/31/13		100,000	100,000	
Month 21	09/30/13		100,000	100,000	
Month 22	10/31/13		100,000	100,000	
Month 23	11/30/13		100,000	100,000	
Month 24	12/31/13		100,000	100,000	
Month 25	01/31/14		100,000	100,000	
Month 26	02/28/14		100,000	100,000	
Month 27	03/31/14		100,000	100,000	
Month 28	04/30/14		100,000	100,000	
Month 29	05/31/14		100,000	100,000	
Month 30	06/30/14		100,000	100,000	
Month 31	07/31/14		100,000	100,000	
Month 32	08/31/14		100,000	100,000	
Month 33	09/30/14		100,000	100,000	
Month 34	10/31/14		100,000	100,000	
Month 35	11/30/14		100,000	100,000	
Month 36	12/31/14		$14,100,000	$14,100,000	<-*Cell E42*
			Internal Rate of Return	23.87%	
Excel Internal Rate of Return Formula =XIRR(E6:E42,B6:B42)					

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

Schedule 1

Existing Activities

Existing Activities consists of ownership and/or management of the following projects:

Property	Street Address	City	State	Zip Code
American MHC	751 Washington Street	Auburn	MA	01051
Bay Oaks Village I	409 School Ave	Panama City	FL	32401
Bay Oaks Village II	420 N Kimbrel Ave	Panama City	FL	32404
Cambridge MHC	11 Manchester Drive	Charles Town	WV	25414
Carlisle Plaza MHP (LP interest)	2901 Carlisle Blvd NE	Albuquerque	NM	87110
Collins MHC	53 Mill Lane	Plattsburgh	NY	12901
Cedar Grove Manufactured Housing Community	209 Pegg Farm Lane	Kernersville	NC	27284
Colonial Manufactured Housing Community	76 Morningstar Drive	New Bern	NC	28562
Crystal Acres RV & MHP	2850 N Crede Ave	Crystal River	FL	34428
Dinner Lake MHP (LP interest)	2900 State Road 17 North	Sebring	FL	33870
Everglades Mobile Home Park	500 S Francisco Street	Clewiston	FL	33440
Gulf Breeze MHP	7530 Maryland Ave	Hudson	FL	34667
Henderson's MHC	950 US Highway 27 N	South Bay	FL	33493
Hunter Springs Retirement Community	316 NE 2nd Street	Crystal River	FL	34429
Lake Wales MHC	705 N. Scenic Highway	Lake Wales	FL	33853
Lamberton Lake MHC	1561 Sherin Drive NE	Grand Rapids	MI	49525
Lake Forest Estates (LP interest)	2881 Highway 110 N	Tyler	TX	75704
Lambeth Manufactured Housing Community	4630 South Main Street	Winston-Salem	NC	27127
Mayflower Hills	0 Patriot Cir	Plymouth	MA	2360
Meadow Woods MHC	1790 Massachusetts Ave	Lunenburg	MA	01462
Monson MHC	268 Palmer Road	Monson	MA	01057
Nalls Court	1002 & 1009 Nalls Rd	Clewiston	FL	33440
Oceanaire MHC	1311 Turnbull Street	New Smyrna Beach	FL	32168
Ormond Beach Oasis	955 S. Nova Rd	Ormond Beach	FL	32174

Docusign Envelope ID: 7C323648-979D-4E61-8E2C-C54C36944373

Palm Spring Estates	40110 US 19 N	Tarpon Springs	FL	34689
Parkwood Manufactured Housing Community	338 Barnes Road Lot 100	Winston-Salem	NC	27107
Royal Oaks MHC	8125 US 1 Highway	Vero Beach	FL	32970
Royal Palm Trailer Park	700 E Ventura Avenue	Clewiston	FL	33440
Town & Country MHC	7835 Morse Avenue	Jacksonville	FL	32244
Tracy Acres MHP	1425 Wana Dr	Erie	PA	16505
Tri-State MHP	2971 W 12th St	Erie	PA	16505
Underwood Estates	Underwood Ave	Plattsburgh	NY	12901
Vandemere Manufactured Housing Community	474 Earl Road	Greenville	NC	27834
Westwood MHP	1804 Nelson Av	Ormond Beach	FL	32174
Whispering Pines MA	47 Washington Street	Auburn	MA	01051
Wolf Bay Manufactured Housing Community	9741 Wilson Road	Elberta	AL	36530

All other assets and projects owned directly or indirectly by Parakeet MHC, LLC from time to time.